

BY-LAWS
 OF
 OCEAN TWO CONDOMINIUM ASSOCIATION, INC.

*A corporation not for profit organized
 under the laws of the State of Florida*

1. Identity. These are the By-Laws of OCEAN TWO CONDOMINIUM ASSOCIATION, INC. (the "Association"), a corporation not for profit incorporated under the laws of the State of Florida, and organized for the purposes set forth in its Articles of Incorporation.
 - 1.1 Fiscal Year. The fiscal year of the Association shall be the twelve month period commencing October 1st each year and terminating September 30th of the following year.
 - 1.2 Seal. The seal of the Association shall bear the name of the corporation, the word "Florida", the words "Corporation Not for Profit", and the year of incorporation.
2. Definitions. For convenience, these By-Laws shall be referred to as the "By-Laws" and the Articles of Incorporation of the Association as the "Articles". The other terms used in these By-Laws shall have the same definitions and meanings as those set forth in the Declaration for **Ocean Two Condominium**, unless herein provided to the contrary, or unless the context otherwise requires.
3. Members.
 - 3.1 Annual Meeting. The annual members' meeting shall be held on the date, at the place and at the time determined by the Board of Directors from time to time, provided that there shall be an annual meeting every calendar year and, to the extent possible, no later than twelve (12) months after the last preceding annual meeting. The purpose of the meeting shall be, except as provided herein to the contrary, to elect Directors, and to transact any other business authorized to be transacted by the members, or as stated in the notice of the meeting sent to Unit Owners in advance thereof. Unless changed by the Board of Directors, the first annual meeting shall be held in the month of September following the year in which the Declaration is filed.
 - 3.2 Special Meetings. Special members' meetings shall be held at such places as provided herein for annual meetings, and may be called by the President or by a majority of the Board of Directors of the Association, and must be called by the President or Secretary upon receipt of a written request from a majority of the members of the Association. The business conducted at a special meeting shall be limited to that stated in the notice of the meeting. Special meetings may also be called by Unit Owners in the manner provided for in the Act. Notwithstanding the foregoing: (i) as to special meetings regarding the adoption of the Condominium's estimated operating budget, reference should be made to Section 10.1 of these By-Laws; and (ii) as to special meetings regarding recall of Board members, reference should be made to Section 4.3 of these By-Laws.
 - 3.3 Participation by Unit Owners. Subject to the following and such further reasonable restrictions as may be adopted from time to time by the Board, Unit Owners shall have the right to speak at the annual and special meetings of the Unit Owners, committee meetings and Board meetings with reference to all designated agenda items. A Unit Owner does not have the right to speak with respect to items not specifically designated on the agenda, provided, however, that the Board may permit a Unit Owner to speak on such items in its discretion. Every Unit Owner who desires to speak at a meeting, may do so, provided that the Unit Owner has filed a written request with the Secretary of the Association not less than 48 hours prior to the scheduled time for commencement of the meeting. Unless waived by the chairman of the meeting (which may be done in the chairman's sole and absolute discretion and without being deemed to constitute a waiver as to any other subsequent speakers), all Unit Owners speaking at a meeting shall be limited to a maximum of three (3) minutes per speaker. Any Unit Owner may tape record or videotape a meeting, subject to the

following and such further reasonable restrictions as may be adopted from time to time by the Board:

- (a) The only audio and video equipment and devices which Unit Owners are authorized to utilize at any such meeting is equipment which does not produce distracting sound or light emissions;
- (b) Audio and video equipment shall be assembled and placed in position in advance of the commencement of the meeting.
- (c) Anyone videotaping or recording a meeting shall not be permitted to move about the meeting room in order to facilitate the recording; and
- (d) At least 48 hours prior written notice shall be given to the Secretary of the Association by any Unit Owner desiring to make an audio or video taping of the meeting.

- 3.4 Notice of Meeting; Waiver of Notice. Notice of a meeting of members (annual or special), stating the time and place and the purpose(s) for which the meeting is called, shall be given by the President or Secretary. A copy of the notice shall be posted at a conspicuous place on the Condominium Property. The notice of the annual meeting shall be hand delivered or sent by regular mail to each Unit Owner, unless the Unit Owner waives in writing the right to receive notice of the annual meeting by mail. The delivery or mailing shall be to the address of the member as it appears on the roster of members. Where a Unit is owned by more than one person, the Association shall provide notice, for meetings and all other purposes, to that one address initially identified for that purpose by the Developer and thereafter as one or more of the Owners of the Unit shall so advise the Association in writing, or if no address is given or if the Owners disagree, notice shall be sent to the address for the Owner as set forth on the deed of the Unit. The posting and mailing of the notice for either special or annual meetings, which notice shall incorporate an identification of agenda items, shall be effected not less than fourteen (14) continuous days, nor more than sixty (60) days, prior to the date of the meeting. The Board shall adopt by rule, and give notice to Unit Owners of, a specific location on the Condominium Property upon which all notices of members' meetings shall be posted.

Notice of specific meetings may be waived before or after the meeting and the attendance of any member (or person authorized to vote for such member), either in person or by proxy, shall constitute such member's waiver of notice of such meeting, and waiver of any and all objections to the place of the meeting, the time of the meeting or the manner in which it has been called or convened, except when his (or his authorized representative's) attendance is for the express purpose of objecting at the beginning of the meeting to the transaction of business because the meeting is not lawfully called.

An officer of the Association, or the manager or other person providing notice of the meeting shall provide an affidavit or United States Postal Service certificate of mailing, to be included in the official records of the Association, affirming that notices of meetings were posted and mailed or hand delivered in accordance with this Section and Section 718.112(2)(d) of the Act, to each Unit Owner at the appropriate address for such Unit Owner. No other proof of notice of a meeting shall be required.

- 3.5 Quorum. A quorum at members' meetings shall be attained by the presence, either in person or by proxy (limited or general), of persons entitled to cast in excess of 33 1/3% of the votes of members entitled to vote at the subject meeting.

3.6 Voting.

- (a) Number of Votes. Except as provided in Section 3.11 hereof, and except when the vote is to be determined by a percentage of shares of ownership in the Condominium (as contemplated in specific portions of the Declaration), in any meeting of members, the Owners of each Unit shall be entitled to cast one vote for each Unit owned. The vote of a Unit shall not be divisible.
- (b) Majority Vote. The acts approved by a majority of the votes present in person or by proxy at a meeting at which a quorum shall have been attained shall be binding upon all Unit Owners for all purposes, except where otherwise provided by law, the Declaration, the Articles or these By-Laws. As used in these By-Laws, the Articles or the Declaration, the terms "majority of the Unit Owners" and "majority of the members" shall mean a majority of the votes entitled to be cast by the members and not a majority of the members themselves and shall further mean more than 50% of the then total authorized votes present in person or by proxy and voting at any meeting of the Unit Owners at which a quorum shall have been attained. Similarly, if some greater percentage of members is required herein or in the Declaration or Articles, it shall mean such greater percentage of the votes of members and not of the members themselves.
- (c) Voting Member. If a Unit is owned by one person, that person's right to vote shall be established by the roster of members. If a Unit is owned by more than one person, those persons (including husbands and wives) shall decide among themselves as to who shall cast the vote of the Unit. In the event that those persons cannot so decide, no vote shall be cast. A person casting a vote for a Unit shall be presumed to have the authority to do so unless the President or the Board of Directors is otherwise notified. If a Unit is owned by a corporation, the person entitled to cast the vote for the Unit shall be designated by a certificate signed by an appropriate officer of the corporation and filed with the Secretary of the Association. Such person need not be a Unit Owner. Those certificates shall be valid until revoked or until superseded by a subsequent certificate or until a change in the ownership of the Unit concerned. A certificate designating the person entitled to cast the vote for a Unit may be revoked by any record owner of an undivided interest in the Unit. If a certificate designating the person entitled to cast the vote for a Unit for which such certificate is required is not on file or has been revoked, the vote attributable to such Unit shall not be considered in determining whether a quorum is present, nor for any other purpose, and the total number of authorized votes in the Association shall be reduced accordingly until such certificate is filed.

- 3.7 Proxies. Votes to be cast at meetings of the Association membership may be cast in person or by proxy. Except as specifically provided herein, Unit Owners may not vote by general proxy, but may vote by limited proxies substantially conforming to the limited proxy form approved by the Division. Limited proxies shall be permitted for votes taken to: waive or reduce reserves; waive financial statements; amend the Declaration, Articles or ByLaws; or for any other matter requiring or permitting a vote of Unit Owners. No proxy, limited or general, shall be used in the election of Board members. General proxies may be used for other matters for which limited proxies are not required and may also be used in voting for nonsubstantive changes to items for which a limited proxy is required and given. A proxy may be made by any person entitled to vote, but shall only be valid for the specific meeting for which originally given and any lawful adjourned meetings thereof. In no event shall any proxy be valid for a period longer than 90 days after the date of the first meeting for which it was given. Every proxy shall be revocable at any time at the pleasure of the person executing it. A proxy must be in writing, signed by the person authorized to cast the vote for the Unit (as above described), name the person(s) voting by proxy and the person authorized to vote for such person(s) and filed with the Secretary before the appointed time of the meeting, or before the time to which the meeting is adjourned. Each proxy shall contain the date, time and place of the meeting for which it is given and, if a limited proxy, shall set forth the matters on which the proxy holder may vote and the manner in which the vote is to be cast. There shall be no limitation on the number of proxies which may be held by any person

(including a designee of the Developer). If a proxy expressly provides, any proxy holder may appoint, in writing, a substitute to act in its place. If such provision is not made, substitution is not permitted.

- 3.8 Adjourned Meetings. If any proposed meeting cannot be organized because a quorum has not been attained, the members who are present, either in person or by proxy, may adjourn the meeting from time to time until a quorum is present, provided notice of the newly scheduled meeting is given in the manner required for the giving of notice of a meeting. Except as required above, proxies given for the adjourned meeting shall be valid for the newly scheduled meeting unless revoked for reasons other than the new date of the meeting.
- 3.9 Order of Business. If a quorum has been attained, the order of business at annual members' meetings, and, if applicable, at other members' meetings, shall be:
- (a) Call to order by President;
 - (b) Appointment by the President of a chairman of the meeting (who need not be a member or a director);
 - (c) Appointment of inspectors of election;
 - (d) Counting of Ballots for Election of Directors;
 - (e) Proof of notice of the meeting or waiver of notice;
 - (f) Reading of minutes;
 - (g) Reports of officers;
 - (h) Reports of committees;
 - (i) Unfinished business;
 - (j) New business;
 - (k) Adjournment.

Such order may be waived in whole or in part by direction of the chairman.

- 3.10 Minutes of Meeting. The minutes of all meetings of Unit Owners shall be kept in a book available for inspection by Unit Owners or their authorized representatives and Board members at any reasonable time. The Association shall retain these minutes for a period of not less than seven (7) years.
- 3.11 Action Without A Meeting. Anything to the contrary herein notwithstanding, to the extent lawful, any action required or which may be taken at any annual or special meeting of members, may be taken without a meeting, without prior notice and without a vote if a consent in writing, setting forth the action so taken, shall be signed by the members (or persons authorized to cast the vote of any such members as elsewhere herein set forth) having not less than the minimum number of votes that would be necessary to authorize or take such action at a meeting of members at which all members (or authorized persons) entitled to vote thereon were present and voted. In order to be effective, the action must be evidenced by one or more written consents describing the action taken, dated and signed by approving members having the requisite number of votes and entitled to vote on such action, and delivered to the Secretary of the Association, or other authorized agent of the Association. Written consent shall not be effective to take the corporate action referred to in the consent unless signed by members having the requisite number of votes necessary to authorize the action within sixty (60) days of the date of the earliest dated consent and delivered to the Association as aforesaid. Any written consent may be revoked prior to the date the Association receives the required number of consents to authorize the proposed action. A revocation is not effective unless in writing and until received by the Secretary of the Association, or other authorized agent of the Association. Within ten (10) days after obtaining such authorization by written consent, notice must be given to members who have not consented in writing. The notice shall fairly summarize the material features of the authorized action. A consent signed

in accordance with the foregoing has the effect of a meeting vote and may be described as such in any document.

4. Directors.

- 4.1 Membership. The affairs of the Association shall be governed by a Board of not less than three (3) nor more than nine (9) directors, the exact number to be determined in the first instance in the Articles, and, thereafter, except as provided herein, from time to time upon majority vote of the membership. Directors must be natural persons who are 18 years of age or older. Directors may not vote at Board meetings by proxy or by secret ballot.
- 4.2 Election of Directors. Election of Directors shall be held at the annual members' meeting, except as herein provided to the contrary. Not less than sixty (60) days prior to a scheduled election, the Association shall mail or deliver to each Unit Owner entitled to vote, a first notice of the date of election. Any Unit Owner or other eligible person desiring to be a candidate for the Board shall give written notice to the Secretary of the Association not less than forty (40) days prior to the scheduled election. Together with the notice of meeting and agenda sent in accordance with Section 3.4 above, the Association shall then mail or deliver a second notice of the meeting to all Unit Owners entitled to vote therein, together with a ballot which shall list all candidates. Upon request of a candidate, the Association shall include an information sheet, no larger than 8-1/2 inches by 11 inches furnished by the candidate, which must be furnished by the candidate to the Association not less than thirty five (35) days before the election, to be included with the mailing of the ballot, with the costs of mailing or delivery and copying to be borne by the Association. The Association has no liability for the contents of the information sheets prepared by the candidates. In order to reduce costs, the Association may print or duplicate the information sheets on both sides of the paper.

The election of directors shall be by written ballot or voting machine. Proxies shall in no event be used in electing the Board at general elections or to fill vacancies caused by resignation or otherwise, provided, however, that limited proxies may be used to fill a vacancy resulting from the recall of a director, in the manner provided by the rules of the Division. Elections shall be decided by a plurality of those ballots and votes cast. There shall be no quorum requirement, however at least 20 percent of the eligible voters must cast a ballot in order to have a valid election of members of the Board. There shall be no cumulative voting.

Notwithstanding the provisions of this Section 4.2, an election and balloting are not required unless more candidates file notices of intent to run or are nominated than vacancies exist on the Board.

4.3 Vacancies and Removal.

- (a) Except as to vacancies resulting from removal of Directors by members (as addressed in subsection (b) below), vacancies in the Board of Directors occurring between annual meetings of members shall be filled by the remaining Directors at any Board meeting, provided that all vacancies in directorships to which Directors were appointed by the Developer pursuant to the provisions of paragraph hereof shall be filled by the Developer without the necessity of any meeting.
- (b) Any Director elected by the members (other than the Developer) may be removed by concurrence of a majority of the voting interests of the members at a special meeting of members called for that purpose or by written agreement signed by a majority of all voting interests. The vacancy in the Board of Directors so created shall be filled by the members at a special meeting of the members called for such purpose, or by the Board of Directors, in the case of removal by a written agreement unless said agreement also designates a new Director to take the place of the one removed. The conveyance of all Units owned by a Director in the Condominium (other than appointees of the Developer or Directors who were not Unit Owners) shall constitute the resignation of such Director.

- (c) Anything to the contrary herein notwithstanding, until a majority of the Directors are elected by members other than the Developer of the Condominium, neither the first Directors of the Association, nor any Directors replacing them, nor any Directors named by the Developer, shall be subject to removal by members other than the Developer. The first Directors and Directors replacing them may be removed and replaced by the Developer without the necessity of any meeting.
- (d) If a vacancy on the Board of Directors results in the inability to obtain a quorum of directors in accordance with these By-Laws, any Owner may apply to the Circuit Court within whose jurisdiction the Condominium lies for the appointment of a receiver to manage the affairs of the Association. At least thirty (30) days prior to applying to the Circuit Court, the Unit Owner shall mail to the Association and post in a conspicuous place on the Condominium Property a notice describing the intended action and giving the Association an opportunity to fill the vacancy(ies) in accordance with these By-Laws. If, during such time, the Association fails to fill the vacancy(ies), the Unit Owner may proceed with the petition. If a receiver is appointed, the Association shall be responsible for the salary of the receiver, court costs and attorneys' fees. The receiver shall have all powers and duties of a duly constituted Board of Directors, and shall serve until the Association fills the vacancy(ies) on the Board sufficient to constitute a quorum in accordance with these By-Laws.

4.4 Term. Except as provided herein to the contrary, the term of each Director's service shall extend until the next annual meeting of the members and subsequently until his successor is duly elected and has taken office, or until he is removed in the manner elsewhere provided. Notwithstanding the foregoing, any Director designated by the Developer shall serve at the pleasure of the Developer and may be removed and replaced by the Developer at any time.

4.5 Organizational Meeting. The organizational meeting of newly-elected or appointed Directors shall be held within ten (10) days of their election or appointment. The directors calling the organizational meeting shall give at least three (3) days advance notice thereof, and a notice stating the time and place of the meeting shall be posted conspicuously on the condominium property at least 48 continuous hours preceding the meeting.

4.6 Meetings. Meetings of the Board of Directors may be held at such time and place as shall be determined, from time to time, by a majority of the Directors. Notice of meetings shall be given to each Director, personally or by mail, telephone or telegraph, and shall be transmitted at least three (3) days prior to the meeting. Meetings of the Board of Directors and any Committee thereof at which a quorum of the members of that Committee are present shall be open to all Unit Owners. Any Unit Owner may tape record or videotape meetings of the Board, in accordance with the rules of the Division. The right to attend such meetings includes the right to speak at such meetings with respect to all designated agenda items. The Association may adopt reasonable rules governing the frequency, duration and manner of Unit Owner statements. Adequate notice of such meetings, which notice shall specifically incorporate an identification of agenda items, shall be posted conspicuously on the Condominium Property at least forty-eight (48) continuous hours preceding the meeting, except in the event of an emergency. Notwithstanding the foregoing, written notice of any meeting of the Board at which nonemergency special assessments, or at which amendment to rules regarding unit use will be proposed, discussed or approved, shall be mailed or delivered to all Unit Owners and posted conspicuously on the Condominium property not less than fourteen (14) continuous days prior to the meeting. Evidence of compliance with this fourteen (14) continuous day notice shall be made by an affidavit executed by the Secretary of the Association and filed among the official records of the Association. The Board shall adopt by rule, and give notice to Unit Owners of, a specific location on the Condominium Property upon which all notices of Board and/or Committee meetings shall be posted. Special meetings of the Directors may be called by the President, and must be called by the President or Secretary at the written request of one-third (1/3) of the Directors or where required by the Act.

- 4.7 Waiver of Notice. Any Director may waive notice of a meeting before or after the meeting and that waiver shall be deemed equivalent to the due receipt by said Director of notice. Attendance by any Director at a meeting shall constitute a waiver of notice of such meeting, and a waiver of any and all objections to the place of the meeting, to the time of the meeting or the manner in which it has been called or convened, except when a Director states at the beginning of the meeting, or promptly upon arrival at the meeting, any objection to the transaction of affairs because the meeting is not lawfully called or convened.
- 4.8 Quorum. A quorum at Directors' meetings shall consist of a majority of the entire Board of Directors. The acts approved by a majority of those present at a meeting at which a quorum is present shall constitute the acts of the Board of Directors, except when approval by a greater number of Directors is specifically required by the Declaration, the Articles or these By-Laws.
- 4.9 Adjourned Meetings. If, at any proposed meeting of the Board of Directors, there is less than a quorum present, the majority of those present may adjourn the meeting from time to time until a quorum is present, provided notice of such newly scheduled meeting is given as required hereunder. At any newly scheduled meeting, any business that might have been transacted at the meeting as originally called may be transacted as long as notice of such business to be conducted at the rescheduled meeting is given, if required (e.g., with respect to budget adoption).
- 4.10 Joinder in Meeting by Approval of Minutes. The joinder of a Director in the action of a meeting by signing and concurring in the minutes of that meeting shall constitute the approval of that Director of the business conducted at the meeting, but such joinder shall not allow the applicable Director to be counted as being present for purposes of quorum.
- 4.11 Presiding Officer. The presiding officer at the Directors' meetings shall be the President (who may, however, designate any other Unit Owner to preside).
- 4.12 Order of Business. If a quorum has been attained, the order of business at Directors' meetings shall be:
- (a) Proof of due notice of meeting;
 - (b) Reading and disposal of any unapproved minutes;
 - (c) Reports of officers and committees;
 - (d) Election of officers;
 - (e) Unfinished business;
 - (f) New business;
 - (g) Adjournment.
- Such order may be waived in whole or in part by direction of the presiding officer.
- 4.13 Minutes of Meetings. The minutes of all meetings of the Board of Directors shall be kept in a book available for inspection by Unit Owners, or their authorized representatives, and Board members at any reasonable time. The Association shall retain these minutes for a period of not less than seven years.
- 4.14 Committees. The Board may by resolution also create Committees and appoint persons to such Committees and vest in such Committees such powers and responsibilities as the Board shall deem advisable.
- 4.15 Proviso. Notwithstanding anything to the contrary contained in this Section 4 or otherwise, the Board shall consist of three directors during the period that the Developer is entitled to appoint a majority of the Directors, as hereinafter provided. The Developer shall have the right to appoint all of the members of the Board of Directors until Unit Owners other than the Developer own fifteen (15%) percent or more of the Units in the Condominium. When Unit Owners other than the Developer own fifteen percent (15%) or more of the Units in the Condominium that will be operated ultimately by the Association, the Unit

Owners other than the Developer shall be entitled to elect not less than one-third (1/3) of the members of the Board of Directors. Upon the election of such director(s), the Developer shall forward to the Division of Florida Land Sales, Condominiums and Mobile Homes the name and mailing address of the director(s) elected. Unit Owners other than the Developer are entitled to elect not less than a majority of the members of the Board of Directors: (a) three years after fifty (50%) percent of the Units that will be operated ultimately by the Association have been conveyed to purchasers; (b) three months after ninety (90%) percent of the Units that will be operated ultimately by the Association have been conveyed to purchasers; (c) when all of the Units that will be operated ultimately by the Association have been completed, some of them have been conveyed to purchasers, and none of the others are being offered for sale by the Developer in the ordinary course of business; (d) when some of the Units have been conveyed to purchasers, and none of the others are being constructed or offered for sale by the Developer in the ordinary course of business; or (e) seven (7) years after recordation of the Declaration, whichever occurs first. The Developer is entitled (but not obligated) to elect at least one (1) member of the Board of Directors as long as the Developer holds for sale in the ordinary course of business five percent (5%) of the Units that will be operated ultimately by the Association.

The Developer may transfer control of the Association to Unit Owners other than the Developer prior to such dates in its sole discretion by causing enough of its appointed Directors to resign, whereupon it shall be the affirmative obligation of Unit Owners other than the Developer to elect Directors and assume control of the Association. Provided at least thirty (30) days' notice of Developer's decision to cause its appointees to resign is given to Unit Owners, neither the Developer, nor such appointees, shall be liable in any manner in connection with such resignations even if the Unit Owners other than the Developer refuse or fail to assume control.

Within seventy-five (75) days after the Unit Owners other than the Developer are entitled to elect a member or members of the Board of Directors, or sooner if the Developer has elected to accelerate such event as aforesaid, the Association shall call, and give not less than sixty (60) days' notice of an election for the member or members of the Board of Directors. The notice may be given by any Unit Owner if the Association fails to do so.

At the time the Unit Owners other than the Developer elect a majority of the members of the Board of Directors of the Association, the Developer shall relinquish control of the Association and such Unit Owners shall accept control. At that time (except as to subparagraph (g), which may be ninety (90) days thereafter) Developer shall deliver to the Association, at Developer's expense, all property of the Unit Owners and of the Association held or controlled by the Developer, including, but not limited to, the following items, if applicable to the Condominium:

- (a) The original or a photocopy of the recorded Declaration of Condominium, and all amendments thereto. If a photocopy is provided, the Developer must certify by affidavit that it is a complete copy of the actual recorded Declaration.
- (b) A certified copy of the Articles of Incorporation of the Association.
- (c) A copy of the By-Laws of the Association.
- (d) The minute book, including all minutes, and other books and records of the Association.
- (e) Any rules and regulations which have been adopted.
- (f) Resignations of resigning officers and Board members who were appointed by the Developer.
- (g) The financial records, including financial statements of the association, and source documents from the incorporation of the Association through the date of the turnover. The records shall be audited for the period from the incorporation of the Association or from the period covered by the last

audit, if applicable, by an independent certified public accountant. All financial statements shall be prepared in accordance with generally accepted accounting principles and shall be audited in accordance with generally accepted auditing standards as prescribed by the Florida Board of Accountancy. The accountant performing the audit shall examine to the extent necessary supporting documents and records, including the cash disbursements and related paid invoices to determine if expenditures were for Association purposes, and billings, cash receipts and related records to determine that the Developer was charged and paid the proper amounts of Assessments.

- (h) Association funds or the control thereof.
- (i) All tangible personal property that is the property of the Association or is or was represented by the Developer to be part of the Common Elements or is ostensibly part of the Common Elements, and an inventory of such property.
- (j) A copy of the plans and specifications utilized in the construction or remodeling of Improvements and the supplying of equipment, and for the construction and installation of all mechanical components serving the Improvements and the Condominium Property, with a certificate, in affidavit form, of an officer of the Developer or an architect or engineer authorized to practice in Florida, that such plans and specifications represent, to the best of their knowledge and belief, the actual plans and specifications utilized in the construction and improvement of the Condominium Property and the construction and installation of the mechanical components serving the Improvements and the Condominium Property.
- (k) A list of the names and addresses of all contractors, subcontractors and suppliers, of which Developer had knowledge at any time in the development of the Condominium, utilized in the construction or remodeling of the improvements and the landscaping of the Condominium and/or Association Property.
- (l) Insurance policies.
- (m) Copies of any Certificates of Occupancy which may have been issued for the Condominium Property.
- (n) Any other permits issued by governmental bodies applicable to the Condominium Property in force or issued within one (1) year prior to the date the Unit Owners take control of the Association.
- (o) All written warranties of contractors, subcontractors, suppliers and manufacturers, if any, that are still effective.
- (p) A roster of Unit Owners and their addresses and telephone numbers, if known, as shown on the Developer's records.
- (q) Leases of the Common Elements and other leases to which the Association is a party, if applicable.
- (r) Employment contracts or service contracts in which the Association is one of the contracting parties, or service contracts in which the Association or Unit Owners have an obligation or responsibility, directly or indirectly, to pay some or all of the fee or charge of the person or persons performing the service.
- (s) All other contracts to which the Association is a party.

5. Authority of the Board.

- 5.1 Powers and Duties. The Board of Directors shall have the powers and duties necessary for the administration of the affairs of the Condominium and may take all acts, through the proper officers of the Association, in executing such powers, except such acts which by law, the Declaration, the Articles or these By-Laws may not be delegated to the Board of Directors by the Unit Owners. Such

powers and duties of the Board of Directors shall include, without limitation (except as limited elsewhere herein), the following:

- (a) Operating and maintaining all Common Elements and the Association Property.
- (b) Determining the expenses required for the operation of the Association and the Condominium.
- (c) Employing and dismissing the personnel necessary for the maintenance and operation of the Common Elements and the Association Property.
- (d) Adopting and amending rules and regulations concerning the details of the operation and use of the Condominium and Association Property, subject to a right of the Unit Owners to overrule the Board as provided in Section 14 hereof.
- (e) Maintaining bank accounts on behalf of the Association and designating the signatories required therefor.
- (f) Purchasing, leasing or otherwise acquiring title to, or an interest in, property in the name of the Association, or its designee, for the use and benefit of its members. The power to acquire personal property shall be exercised by the Board and the power to acquire real property shall be exercised as described herein and in the Declaration.
- (g) Purchasing, leasing or otherwise acquiring Units or other property, including, without limitation, Units at foreclosure or other judicial sales, all in the name of the Association, or its designee.
- (h) Selling, leasing, mortgaging or otherwise dealing with Units acquired, and subleasing Units leased, by the Association, or its designee.
- (i) Organizing corporations and appointing persons to act as designees of the Association in acquiring title to or leasing Units or other property.
- (j) Obtaining and reviewing insurance for the Condominium and Association Property.
- (k) Making repairs, additions and improvements to, or alterations of, Condominium Property and Association Property, and repairs to and restoration of Condominium and Association Property, in accordance with the provisions of the Declaration after damage or destruction by fire or other casualty, or as a result of condemnation or eminent domain proceedings or otherwise.
- (l) Enforcing obligations of the Unit Owners, allocating profits and expenses and taking such other actions as shall be deemed necessary and proper for the sound management of the Condominium.
- (m) Levying fines against appropriate Unit Owners for violations of the rules and regulations established by the Association to govern the conduct of such Unit Owners. No fine shall be levied except after giving reasonable notice and opportunity for a hearing to the affected Unit Owner and, if applicable, his tenant, licensee or invitee. No fine may exceed \$100.00 per violation, however, a fine may be levied on the basis of each day of a continuing violation with a single notice and opportunity for hearing, provided however, that no such fine shall in the aggregate exceed \$1,000.00. No fine shall become a lien upon a Unit.
- (n) Purchasing or leasing Units for use by resident superintendents and other similar persons or for the general use and enjoyment of the Unit Owners.
- (o) Borrowing money on behalf of the Association or the Condominium when required in connection with the operation, care, upkeep and maintenance of Common Elements (if the need for the funds is unanticipated) or the acquisition of real property, and granting mortgages on and/or security interests in Association owned property; provided, however, that the consent of the Owners of at least two-thirds (2/3rds) of the Units

represented at a meeting at which a quorum has been attained in accordance with the provisions of these By-Laws shall be required for the borrowing of any sum which would cause the total outstanding indebtedness of the Association to exceed \$10,000.00. If any sum borrowed by the Board of Directors on behalf of the Condominium pursuant to the authority contained in this subparagraph (o) is not repaid by the Association, a Unit Owner who pays to the creditor such portion thereof as his interest in his Common Elements bears to the interest of all the Unit Owners in the Common Elements shall be entitled to obtain from the creditor a release of any judgment or other lien which said creditor shall have filed or shall have the right to file against, or which will affect, such Owner's Unit.

- (p) Subject to the provisions of Section 5.2 below, contracting for the management and maintenance of the Condominium and Association Property and authorizing a management agent (who may be an affiliate of the Developer) to assist the Association in carrying out its powers and duties by performing such functions as the submission of proposals, collection of Assessments, preparation of records, enforcement of rules and maintenance, repair, and replacement of the Common Elements and Association Property with such funds as shall be made available by the Association for such purposes. The Association and its officers shall, however, retain at all times the powers and duties granted by the Declaration, the Articles, these By-Laws and the Act, including, but not limited to, the making of Assessments, promulgation of rules and execution of contracts on behalf of the Association.
- (q) At its discretion, but within the parameters of the Act, authorizing Unit Owners or other persons to use portions of the Common Elements or Association Property for private parties and gatherings and imposing reasonable charges for such private use.
- (r) Executing all documents or consents, on behalf of all Unit Owners (and their mortgagees), required by all governmental and/or quasi-governmental agencies in connection with land use and development matters (including, without limitation, plats, waivers of plat, unities of title, covenants in lieu thereof, etc.), and in that regard, each Owner, by acceptance of the deed to such Owner's Unit, and each mortgagee of a Unit Owner by acceptance of a lien on said Unit, appoints and designates the President of the Association as such Owner's agent and attorney-in-fact to execute any and all such documents or consents.
- (s) The duty and obligation to comply with any requirements of any Federal, State or local rule, regulation, ordinance, code, project or agreement, relating to the installation, maintenance, repair, restoration, renourishing and/or replacing of the beach/dune system, any seawall, and any crosswalk/boardwalk to and from the beach now or hereafter located upon or adjacent to (even if beyond the legal boundaries of) the Condominium Property.
- (t) Exercising (i) all powers specifically set forth in the Declaration, the Articles, these By-Laws and in the Act, (ii) all powers incidental thereto, and (iii) all other powers of a Florida corporation not for profit.
- (u) Contracting with and creating or joining in the creation of special taxing districts, joint councils and the like.

5.2 Contracts. Any contract which is not to be fully performed within one (1) year from the making thereof, for the purchase, lease or renting of materials or equipment to be used by the Association in accomplishing its purposes, and all contracts for the provision of services, shall be in writing. Where a contract for purchase, lease or renting materials or equipment, or for the provision of services, requires payment by the Association on behalf of the Condominium in the aggregate exceeding \$5,000.00, the Association shall obtain competitive bids for the materials, equipment or services. Nothing contained herein shall be construed to require the Association to accept the lowest bid. Notwithstanding the foregoing, contracts with employees of the Association and contracts for attorney, accountant, architect, community association manager, engineering

and landscape architect services shall not be subject to the provisions hereof. Further, nothing contained herein is intended to limit the ability of the Association to obtain needed products and services in an emergency; nor shall the provisions hereof apply if the business entity with which the Association desires to contract is the only source of supply within the County.

6. Officers.

- 6.1 Executive Officers. The executive officers of the Association shall be a President, a Vice-President, a Treasurer and a Secretary (none of whom need be Directors), all of whom shall be elected by the Board of Directors and who may be peremptorily removed at any meeting by concurrence of a majority of all of the Directors. A person may hold more than one office, except that the President may not also be the Secretary. No person shall sign an instrument or perform an act in the capacity of more than one office. The Board of Directors from time to time shall elect such other officers and designate their powers and duties as the Board shall deem necessary or appropriate to manage the affairs of the Association. Officers, other than designees of the Developer, must be Unit Owners (or authorized representatives of corporate/partnership/trust Unit Owners).
- 6.2 President. The President shall be the chief executive officer of the Association. He shall have all of the powers and duties that are usually vested in the office of president of an association.
- 6.3 Vice-President. The Vice-President shall exercise the powers and perform the duties of the President in the absence or disability of the President. He also shall assist the President and exercise such other powers and perform such other duties as are incident to the office of the vice president of an association and as may be required by the Directors or the President.
- 6.4 Secretary. The Secretary shall keep the minutes of all proceedings of the Directors and the members. The Secretary shall attend to the giving of all notices to the members and Directors and other notices required by law. The Secretary shall have custody of the seal of the Association and shall affix it to instruments requiring the seal when duly signed. The Secretary shall keep the records of the Association, except those of the Treasurer, and shall perform all other duties incident to the office of the secretary of an association and as may be required by the Directors or the President.
- 6.5 Treasurer. The Treasurer shall have custody of all property of the Association, including funds, securities and evidences of indebtedness. The Treasurer shall keep books of account for the Association in accordance with good accounting practices, which, together with substantiating papers, shall be made available to the Board of Directors for examination at reasonable times. The Treasurer shall submit a treasurer's report to the Board of Directors at reasonable intervals and shall perform all other duties incident to the office of treasurer and as may be required by the Directors or the President. All monies and other valuable effects shall be kept for the benefit of the Association in such depositories as may be designated by a majority of the Board of Directors.
- 6.6 Developer Appointees. No officer appointed by the Developer may be removed except as provided in Section 4.15 hereof and by law.

7. Fiduciary Duty. The officers and directors of the Association, as well as any manager employed by the Association, have a fiduciary relationship to the Unit Owners. No officer, director or manager shall solicit, offer to accept, or accept any thing or service of value for which consideration has not been provided for his own benefit or that of his immediate family, from any person providing or proposing to provide goods or services to the Association. Any such officer, director or manager who knowingly so solicits, offers to accept or accepts any thing or service of a value exceeding \$100.00 shall, in addition to all other rights and remedies of the Association and Unit Owners, be subject to a civil penalty in accordance with the Act. Notwithstanding the foregoing, this paragraph shall not prohibit an officer, director or manager from accepting services or items received in connection with trade fairs or education programs.

8. Compensation. Neither Directors nor officers shall receive compensation for their services as such, but this provision shall not preclude the Board of Directors from

employing a Director or officer as an employee of the Association, nor preclude contracting with a Director or officer for the management of the Condominium or for any other service to be supplied by such Director or officer. Directors and officers shall be compensated for all actual and proper out of pocket expenses relating to the proper discharge of their respective duties.

9. Resignations. Any Director or officer may resign his post at any time by written resignation, delivered to the President or Secretary, which shall take effect upon its receipt unless a later date is specified in the resignation, in which event the resignation shall be effective from such date unless withdrawn. The acceptance of a resignation shall not be required to make it effective. The conveyance of all Units owned by any Director or officer (other than appointees of the Developer or officers who were not Unit Owners) shall constitute a written resignation of such Director or officer.

10. Fiscal Management. The provisions for fiscal management of the Association set forth in the Declaration and Articles shall be supplemented by the following provisions:

10.1 Budget.

- (a) Adoption by Board; Items. The Board of Directors shall from time to time, and at least annually, prepare a budget for all Condominiums governed and operated by the Association (which shall detail all accounts and items of expense and contain at least all items set forth in Section 718.504(21) of the Act, if applicable), determine the amount of Assessments payable by the Unit Owners to meet the expenses of such Condominium(s) and allocate and assess such expenses among the Unit Owners in accordance with the provisions of the Declaration. In addition, if the Association maintains limited common elements with the cost to be shared only by those entitled to use the limited common elements, the budget or a schedule attached thereto shall show amounts budgeted therefor. In addition to annual operating expenses, the budget shall include reserve accounts for capital expenditures and deferred maintenance (to the extent required by law). These accounts shall include, but not be limited to, roof replacement, building painting and pavement resurfacing regardless of the amount of deferred maintenance expense or replacement cost, and for any other item for which the deferred maintenance expense or replacement cost exceeds \$10,000.00. The amount of reserves shall be computed by means of a formula which is based upon the estimated remaining useful life and the estimated replacement cost of each reserve item. The Association may adjust replacement and reserve assessments annually to take into account any changes in estimates or extension of the useful life of a reserve item caused by deferred maintenance. Reserves shall not be required if the members of the Association have, by a majority vote at a duly called meeting of members, determined for a specific fiscal year to provide no reserves or reserves less adequate than required hereby. Prior to transfer of control of the Association to Unit Owners other than the Developer, the Developer may vote to waive reserves or reduce the funding of reserves for the first two (2) years of operation of the Association, after which time, reserves may only be waived or reduced upon the vote of a majority of all non-Developer voting interests voting in person or by limited proxy at a duly called meeting of the Association. If a meeting of Unit Owners has been called to determine to provide no reserves or reserves less adequate than required, and such result is not attained or a quorum is not attained, the reserves, as included in the budget, shall go into effect. Reserve funds and any interest accruing thereon shall remain in the reserve account or accounts, and shall be used only for authorized reserve expenditures, unless their use for any other purposes is approved in advance by a vote of the majority of the voting interests, voting in person or by limited proxy, at a duly called meeting of the Association. Prior to transfer of control of the Association to Unit Owners other than the Developer, the Association shall not vote to use reserves for purposes other than that for which they were intended without the approval of a majority of all non-Developer voting interests, voting in person or by limited proxy at a duly called meeting of the Association.

The adoption of a budget for the Condominium shall comply with the requirements hereinafter set forth:

- (i) Notice of Meeting. A copy of the proposed budget of Common Expenses shall be mailed to each Unit Owner not less than fourteen (14) days prior to the meeting of the Board of Directors at which the budget will be considered, together with a notice of that meeting indicating the time and place of such meeting.
 - (ii) Special Membership Meeting. If a budget is adopted by the Board of Directors which requires Assessments against such Unit Owners in any year exceeding one hundred fifteen percent (115%) of such Assessments for the preceding year, as hereinafter defined, upon written application of ten percent (10%) of the Unit Owners, a special meeting of the Unit Owners shall be held within thirty (30) days of delivery of such application to the Board of Directors. Each Unit Owner shall be given at least ten (10) days' notice of said meeting. At the special meeting, Unit Owners shall consider and adopt a budget. The adoption of said budget shall require a vote of Owners of not less than a majority of all the Units (including Units owned by the Developer). If a meeting of the Unit Owners has been called as aforesaid and a quorum is not obtained or a substitute budget has not been adopted by the Unit Owners, the budget adopted by the Board of Directors shall go into effect as scheduled.
 - (iii) Determination of Budget Amount. In determining whether a budget requires Assessments against Unit Owners in any year exceeding one hundred fifteen percent (115%) of Assessments for the preceding year, there shall be excluded in the computations any authorized provisions for reasonable reserves made by the Board of Directors in respect of repair or replacement of the Condominium Property or in respect of anticipated expenses of the Association which are not anticipated to be incurred on a regular or annual basis, and there shall be excluded further from such computation Assessments for improvements to the Condominium Property.
 - (iv) Proviso. As long as the Developer is in control of the Board of Directors of the Association, the Board shall not impose Assessments for a year greater than one hundred fifteen percent (115%) of the prior year's Assessments, as herein defined, without the approval of a majority of Unit Owners other than the Developer.
- (b) Adoption by Membership. In the event that the Board of Directors shall be unable to adopt a budget for a fiscal year in accordance with the requirements of Subsection 10.1(a) above, the Board of Directors may call a special meeting of Unit Owners for the purpose of considering and adopting such budget, which meeting shall be called and held in the manner provided for such special meetings in said subsection, or propose a budget in writing to the members, and if such budget is adopted by the members, upon ratification by a majority of the Board of Directors, it shall become the budget for such year.
- 10.2 Assessments. Assessments against Unit Owners for their share of the items of the budget shall be made for the applicable fiscal year annually at least twenty (20) days preceding the year for which the Assessments are made. Such Assessments shall be due in equal installments, payable in advance on the first day of each month (or each quarter at the election of the Board) of the year for which the Assessments are made. If annual Assessments are not made as required, Assessments shall be presumed to have been made in the amount of the last prior Assessments, and monthly (or quarterly) installments on such Assessments shall be due upon each installment payment date until changed by amended Assessments. In the event the annual Assessments prove to be insufficient, the budget and Assessments may be amended at any time by the Board of Directors, subject to the provisions of Section 10.1 hereof, if applicable. Unpaid Assessments for the remaining portion of the fiscal year for which

amended Assessments are made shall be payable in as many equal installments as there are full months (or quarters) of the fiscal year left as of the date of such amended Assessments, each such monthly (or quarterly) installment to be paid on the first day of the month (or quarter), commencing the first day of the next ensuing month (or quarter). If only a partial month (or quarter) remains, the amended Assessments shall be paid with the next regular installment in the following year, unless otherwise directed by the Board in its resolution.

- 10.3 Special Assessments and Assessments for Capital Improvements. Special Assessments and Capital Improvement Assessments (as defined in the Declaration) shall be levied as provided in the Declaration and shall be paid in such manner as the Board of Directors of the Association may require in the notice of such Assessments. The funds collected pursuant to a Special Assessment shall be used only for the specific purpose or purposes set forth in the notice of adoption of same. However, upon completion of such specific purpose or purposes, any excess funds will be considered Common Surplus, and may, at the discretion of the Board, either be returned to the Unit Owners or applied as a credit towards future assessments.
- 10.4 Depository. The depository of the Association shall be such bank or banks in the State of Florida as shall be designated from time to time by the Directors and in which the monies of the Association shall be deposited. Withdrawal of monies from those accounts shall be made only by checks signed by such person or persons as are authorized by the Directors. All sums collected by the Association from Assessments or otherwise may be commingled in a single fund or divided into more than one fund, as determined by a majority of the Board of Directors. In addition, a separate reserve account should be established for the Association in such a depository for monies specifically designated as reserves for capital expenditures and/or deferred maintenance. Reserve and operating funds of the Association shall not be commingled.
- 10.5 Acceleration of Installments Upon Default. If a Unit Owner shall be in default in the payment of an installment upon his Assessments, the Board of Directors or its agent may accelerate the balance of the current budget years' Assessments upon thirty (30) days' prior written notice to the Unit Owner and the filing of a claim of lien, and the then unpaid balance of the current budget years' Assessments shall be due upon the date stated in the notice, but not less than five (5) days after delivery of the notice to the Unit Owner, or not less than ten (10) days after the mailing of such notice to him by certified mail, whichever shall first occur.
- 10.6 Fidelity Insurance or Fidelity Bonds. The Association shall obtain and maintain adequate insurance or fidelity bonding of all persons who control or disburse Association funds, which shall include, without limitation, those individuals authorized to sign Association checks and the president, secretary and treasurer of the Association. The insurance policy or fidelity bond shall be in such amount as shall be determined by a majority of the Board, but must be sufficient to cover the maximum funds that will be in the custody of the Association or its management agent at any one time. The premiums on such bonds and/or insurance shall be paid by the Association as a Common Expense.
- 10.7 Accounting Records and Reports. The Association shall maintain accounting records in the State, according to accounting practices normally used by similar associations. The records shall be open to inspection by Unit Owners or their authorized representatives at reasonable times and written summaries of them shall be supplied at least annually. The records shall include, but not be limited to, (a) a record of all receipts and expenditures, and (b) an account for each Unit designating the name and current mailing address of the Unit Owner, the amount of Assessments, the dates and amounts in which the Assessments come due, the amount paid upon the account and the dates so paid, and the balance due. Written summaries of the records described in clause (a) above, in the form and manner specified below, shall be supplied to each Unit Owner annually.

Within sixty (60) days following the end of the fiscal year, the Board shall mail, or furnish by personal delivery, to each Unit Owner a complete financial report of actual receipts and expenditures for the previous twelve (12) months, or a complete set of financial statements for the preceding fiscal year prepared in accordance with generally accepted accounting principles. The report shall show

Depository

Acceleration
of
Assessments

Accounting
Records

the amount of receipts by accounts and receipt classifications and shall show the amount of expenses by accounts and expense classifications, including, if applicable, but not limited to, the following:

- (a) Costs for security;
- (b) Professional and management fees and expenses;
- (c) Taxes;
- (d) Costs for recreation facilities;
- (e) Expenses for refuse collection and utility services;
- (f) Expenses for lawn care;
- (g) Costs for building maintenance and repair;
- (h) Insurance costs;
- (i) Administrative and salary expenses; and
- (j) Reserves for capital expenditures, deferred maintenance and any other category for which the Association maintains a reserve account or accounts.

10.8 Application of Payment. All payments made by a Unit Owner shall be applied as provided in these By-Laws and in the Declaration or as otherwise determined by the Board.

10.9 Notice of Meetings. Notice of any meeting where Assessments against Unit Owners are to be considered for any reason shall specifically contain a statement that Assessments will be considered and the nature of any such Assessments.

11. Roster of Unit Owners. Each Unit Owner shall file with the Association a copy of the deed or other document showing his ownership. The Association shall maintain such information. The Association may rely upon the accuracy of such information for all purposes until notified in writing of changes therein as provided above. Only Unit Owners of record on the date notice of any meeting requiring their vote is given shall be entitled to notice of and to vote at such meeting, unless prior to such meeting other Owners shall produce adequate evidence, as provided above, of their interest and shall waive in writing notice of such meeting.

12. Parliamentary Rules. Except when specifically or impliedly waived by the chairman of a meeting (either of members or directors), Robert's Rules of Order (latest edition) shall govern the conduct of the Association meetings when not in conflict with the Act, the Declaration, the Articles or these By-Laws; provided, however, that a strict or technical reading of said Robert's Rules shall not be made so as to frustrate the will of the persons properly participating in said meeting.

13. Amendments. Except as may be provided in the Declaration to the contrary, these By-Laws may be amended in the following manner:

13.1 Notice. Notice of the subject matter of a proposed amendment shall be included in the notice of a meeting at which a proposed amendment is to be considered.

13.2 Adoption. A resolution for the adoption of a proposed amendment may be proposed either by a majority of the Board of Directors or by not less than one-third (1/3) of the members of the Association. Directors and members not present in person or by proxy at the meeting considering the amendment may express their approval in writing, provided that such approval is delivered to the Secretary at or prior to the meeting. The approval must be:

- (a) by not less than a majority of the votes of all members of the Association represented at a meeting at which a quorum has been attained and by not less than 66-2/3% of the entire Board of Directors; or
- (b) after control of the Association has been turned over to Unit Owners other than the Developer, by not less than 80% of the votes of the members of

Amended
By-Laws

the Association represented at a meeting at which a quorum has been attained.

- 13.3 Proviso. No amendment may be adopted which would eliminate, modify, prejudice, abridge or otherwise adversely affect any rights, benefits, privileges or priorities granted or reserved to the Developer or mortgagees of Units without the consent of said Developer and mortgagees in each instance. No amendment shall be made that is in conflict with the Articles or Declaration. No amendment to this Section 13.3 shall be valid.
- 13.4 Execution and Recording. A copy of each amendment shall be attached to a certificate certifying that the amendment was duly adopted as an amendment of these By-Laws, which certificate shall be executed by the President or Vice-President and attested by the Secretary or Assistant Secretary of the Association with the formalities of a deed, or by the Developer alone if the amendment has been adopted consistent with the provisions of the Declaration allowing such action by the Developer. The amendment shall be effective when the certificate and a copy of the amendment is recorded in the Public Records of the County with an identification on the first page of the amendment of the Official Records Book and Page of said Public Records where the Declaration is recorded.
14. Rules and Regulations. Attached hereto as Schedule "A" and made a part hereof are initial rules and regulations concerning the use of portions of the Condominium and Association Property. The Board of Directors may, from time to time, modify, amend or add to such rules and regulations, except that subsequent to the date control of the Board is turned over by the Developer to Unit Owners other than the Developer, Owners of a majority of the Units may overrule the Board with respect to any such modifications, amendments or additions. Copies of such modified, amended or additional rules and regulations shall be furnished by the Board of Directors to each affected Unit Owner not less than thirty (30) days prior to the effective date thereof. At no time may any rule or regulation be adopted which would prejudice the rights reserved to the Developer.
15. Official Records. From the inception of the Association, the Association shall maintain for the condominium, a copy of each of the following, where applicable, which shall constitute the official records of the Association:
 - (a) The plans, permits, warranties, and other items provided by the Developer pursuant to Section 718.301(4) of the Act;
 - (b) A photocopy of the recorded Declaration of Condominium and all amendments thereto;
 - (c) A photocopy of the recorded By-Laws of the Association and all amendments thereto;
 - (d) A certified copy of the Articles of Incorporation of the Association or other documents creating the Association and all amendments thereto;
 - (e) A copy of the current Rules and Regulations of the Association;
 - (f) A book or books containing the minutes of all meetings of the Association, of the Board of Directors, and of Unit Owners, which minutes shall be retained for a period of not less than 7 years.
 - (g) A current roster of all Unit Owners, their mailing addresses, Unit identifications, voting certifications, and if known, telephone numbers;
 - (h) All current insurance policies of the Association and of all Condominiums operated by the Association;
 - (i) A current copy of any management agreement, lease, or other contract to which the Association is a party or under which the Association or the Unit Owners have an obligation or responsibility;
 - (j) Bills of Sale or transfer for all property owned by the Association;
 - (k) Accounting records for the Association and the accounting records for the Condominium, according to good accounting practices. All accounting records

shall be maintained for a period of not less than 7 years. The accounting records shall include, but not be limited to:

- (i) Accurate, itemized, and detailed records for all receipts and expenditures.
- (ii) A current account and a monthly, bimonthly, or quarterly statement of the account for each Unit designating the name of the Unit Owner, the due date and amount of each Assessment, the amount paid upon the account, and the balance due.
- (iii) All audits, reviews, accounting statements, and financial reports of the Association or Condominium.
- (l) All contracts for work to be performed. Bids for work to be performed shall also be considered official records and shall be maintained for a period of 1 year;
- (m) Ballots, sign-in sheets, voting proxies and all other papers relating to elections which shall be maintained for a period of 1 year from the date of the meeting to which the document relates.
- (n) All rental records where the Association is acting as agent for the rental of Units.
- (o) A copy of the current Question and Answer Sheet, in the form promulgated by the Division, which shall be updated annually.
- (p) All other records of the Association not specifically listed above which are related to the operation of the Association.

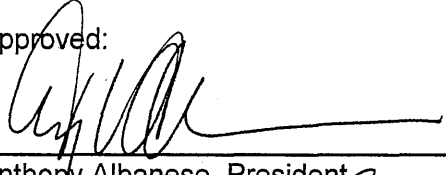
The official records of the Association shall be maintained in the County in which the Condominium is located, or if in another county, then within twenty five (25) miles of the Condominium.

The official records of the Association shall be open to inspection by any Association member or the authorized representative of such member at all reasonable times. The right to inspect the records includes the right to make or obtain copies, at a reasonable expense, if any, of the Association member. The Association may adopt reasonable rules regarding the time, location, notice and manner of record inspections and copying. The failure of an Association to provide official records to a Unit Owner or his authorized representative within five (5) working days after receipt of a written request therefor shall create a rebuttable presumption that the Association willfully failed to comply with this paragraph. Failure to permit inspection of the Association records as provided herein entitles any person prevailing in an enforcement action to recover reasonable attorneys' fees from the person in control of the records who, directly or indirectly, knowingly denies access to the records for inspection. The Association shall maintain on the Condominium Property an adequate number of copies of the Declaration, Articles, By-Laws and rules, and all amendments to the foregoing, as well as the Question and Answer Sheet, to ensure their availability to Unit Owners and prospective purchasers. The Association may charge its actual costs for preparing and furnishing these documents to those persons requesting same.

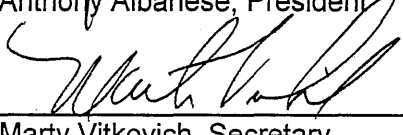
16. Certificate of Compliance. A certificate of compliance from a licensed electrical contractor or electrician may be accepted by the Association's Board as evidence of compliance of the Units to the applicable condominium fire and life safety code.
17. Construction. Wherever the context so permits, the singular shall include the plural, the plural shall include the singular, and the use of any gender shall be deemed to include all genders.
18. Captions. The captions herein are inserted only as a matter of convenience and for reference, and in no way define or limit the scope of these By-Laws or the intent of any provision hereof.

The foregoing was adopted as the By-Laws of **OCEAN TWO CONDOMINIUM ASSOCIATION, INC.**, a corporation not for profit under the laws of the State of Florida, as of the 11th day of May, 2001.

Approved:



Anthony Albanese, President



Marty Vitkovich, Secretary

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**CERTIFICATE OF AMENDMENT
TO THE ARTICLES OF INCORPORATION
OCEAN TWO CONDOMINIUM ASSOCIATION, INC.**

THIS CERTIFICATE OF AMENDMENT is executed this 10th day of October, 2002, by **OCEAN TWO CONDOMINIUM ASSOCIATION, INC.**, a Florida not for profit corporation, (hereinafter referred to as "Association").

RECITALS

A. The Association has been established for the operation of Ocean Two , a condominium, in accordance with the Declaration of Condominium and related documents which were recorded June 26, 2001, in Official Records Book 19740, Page 2800, of the Public Records of Miami-Dade County, Florida, (the "Declaration").

B. The Association's Articles of Incorporation are attached to the Declaration as Exhibit "5" and were recorded in Official Records Book 19740 at Page 2915 of the Public Records of Miami-Dade County, Florida, (the "Articles").

C. An amendment was proposed to Section 10.1 of Article 10 of the Articles in accordance with the provisions of Article 13 of the Articles at a duly noticed Combined Special Meeting of the Members and the Board of Directors held on the 9th day of September, 2002, (the "Meeting"); at which a quorum of Directors was present in person and a quorum of Members were present in person and by limited proxy.

D. The proposed amendment to Article 14 of the Articles was approved by not less than a majority of the votes of all Members of the Association represented at the Meeting as required by Section 13.3 of Article 13 of the Articles.

NOW, THEREFORE, the Association does hereby state the following:

1. The foregoing recitals are true and correct and are incorporated herein by reference.

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2. The duly adopted Amendment to Section 10.1 of Article 10 of the Articles was filed by the Florida Secretary of State's office on October 1, 2002 and a copy of said Articles of Amendment are attached hereto and incorporated herein as Exhibit "A".

IN WITNESS WHEREOF, the undersigned have set their hands and seal this 10th day of October, 2002.

Signed in the presence of:

**OCEAN TWO CONDOMINIUM
ASSOCIATION, INC.**

Print Name: MARIO PELAEZ

BY: Joseph Behar

Joseph Behar, President

Print Name: Mark Curry

BY: David Sostchin

David Sostchin, Secretary

Print Name: MARIO PELAEZ

Print Name: Mark Curry

STATE OF FLORIDA)
COUNTY OF MIAMI-DADE)

The foregoing instrument was acknowledged before me this 10th day of October, 2002, by Joseph Behar as President and David Sostchin as Secretary, respectively of **OCEAN TWO CONDOMINIUM ASSOCIATION, INC.**, a Florida not for profit corporation, on behalf of the corporation. They (who are personally known to me)/(who have produced _____ as identification) and (did)/(did not) take an oath.

Tricia Wright
Signature of Notary
My Commission Expires:

PREPARED BY:
Lisa A. Lerner, Esquire
SIEGFRIED, RIVERA, LERNER,
DE LA TORRE & SOBEL, P.A.
201 Alhambra Circle, Suite 1102
Coral Gables, FL 33134

 Tricia Wright
My Commission CC929779
Expires April 20, 2004

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State of Florida



Department of State

I certify the attached is a true and correct copy of the Articles of Amendment, filed on October 1, 2002, to Articles of Incorporation for OCEAN TWO CONDOMINIUM ASSOCIATION, INC., a Florida corporation, as shown by the records of this office.

The document number of this corporation is N01000003321.

Given under my hand and the
Great Seal of the State of Florida
at Tallahassee, the Capitol, this the
Third day of October, 2002



CR2EO22 (7-02)

EXHIBIT A

Jim Smith

Jim Smith
Secretary of State

20742PG0456

ARTICLES OF AMENDMENT

1. The Articles of Incorporation of Ocean Two Condominium Association, Inc., a Florida corporation not-for-profit (the "Association"), created pursuant to Chapter 617, Florida Statutes were filed on May 11, 2001.
2. Pursuant to the provisions of Section 617.1006, Florida Statutes, the Association adopts the following Articles of Amendment to its Articles of Incorporation.
3. Section 10.1 of Article 10 of the Articles of Incorporation is hereby amended as follows:

New Language is indicated by underscored type.

Deleted language is indicated by ~~struck through~~ type.

- 10.1 Number and Qualifications. The property, business and affairs of the Association shall be managed by a board consisting of the number of directors determined in the manner provided by the By-Laws, but which shall consist of not less than three (3) directors. Directors ~~need not~~ shall be members of the Association.

All other sections of Article 10 remain unchanged.

4. Pursuant to Chapter 617, Florida Statutes, this amendment was approved by a majority of the members of the Association present in person or by proxy at a duly noticed special meeting of the Association held on the 9th day of September, 2002 at which a quorum of members were present in person or by proxy. The number of votes cast by the members was sufficient for approval of the amendment.

IN WITNESS WHEREOF, the undersigned President and Secretary of this corporation have executed these Articles of Amendment this 12 day of September, 2002.

OCEAN TWO CONDOMINIUM ASSOCIATION, INC.

BY: [Signature]
Joseph Behar, President

BY: [Signature]
David Sostchin, Secretary

RECORDED IN OFFICIAL RECORD BOOK
OF DADE COUNTY, FLORIDA
RECORD VERIFIED
HARVEY RUVIN
CLERK CIRCUIT COURT

State of Florida



Department of State

I certify the attached is a true and correct copy of the Articles of Incorporation of OCEAN TWO CONDOMINIUM ASSOCIATION, INC., a Florida corporation, filed on May 11, 2001, as shown by the records of this office.

The document number of this corporation is N01000003321.

Given under my hand and the
Great Seal of the State of Florida
at Tallahassee, the Capitol, this the
Eleventh day of May, 2001



CR2EO22 (1-99)

Katherine Harris

Katherine Harris
Secretary of State

EXHIBIT "S"

FILED

01 MAY 11 PM 2:13

SECRETARY OF STATE
TALLAHASSEE, FLORIDA

ARTICLES OF INCORPORATION
FOR
OCEAN TWO CONDOMINIUM
ASSOCIATION, INC.

The undersigned incorporator, for the purpose of forming a corporation not for profit pursuant to the laws of the State of Florida, hereby adopts the following Articles of Incorporation:

ARTICLE 1
NAME

The name of the corporation shall be **OCEAN TWO CONDOMINIUM ASSOCIATION, INC.** For convenience, the corporation shall be referred to in this instrument as the "Association", these Articles of Incorporation as the "Articles", and the By-Laws of the Association as the "By-Laws".

ARTICLE 2
OFFICE

The principal office and mailing address of the Association shall be at 19111 Collins Avenue, Sunny Isles Beach, Florida 33160, or at such other place as may be subsequently designated by the Board of Directors. All books and records of the Association shall be kept at its principal office or at such other place as may be permitted by the Act.

ARTICLE 3
PURPOSE

The purpose for which the Association is organized is to provide an entity pursuant to the Florida Condominium Act as it exists on the date hereof (the "Act") for the operation of that certain condominium located in Miami-Dade County, Florida, and known as **OCEAN TWO CONDOMINIUM** (the "Condominium").

ARTICLE 4
DEFINITIONS

The terms used in these Articles shall have the same definitions and meanings as those set forth in the Declaration of the Condominium to be recorded in the Public Records of Miami-Dade County, Florida, unless herein provided to the contrary, or unless the context otherwise requires.

ARTICLE 5
POWERS

The powers of the Association shall include and be governed by the following:

- 5.1 General. The Association shall have all of the common-law and statutory powers of a corporation not for profit under the Laws of Florida, except as expressly limited or restricted by the terms of these Articles, the Declaration, the By-Laws or the Act.
- 5.2 Enumeration. The Association shall have all of the powers and duties set forth in the Act, except as limited by these Articles, the By-Laws and the Declaration (to the extent that they are not in conflict with the Act), and all of the powers and duties reasonably necessary to operate the Condominium pursuant to the Declaration and as more particularly described in the By-Laws, as they may be amended from time to time, including, but not limited to, the following:
 - (a) To make and collect Assessments and other charges against members as Unit Owners (whether or not such sums are due and payable to the Association), and to use the proceeds thereof in the exercise of its powers and duties.

- (b) To buy, accept, own, operate, lease, sell, trade and mortgage both real and personal property in accordance with the provisions of the Declaration.
 - (c) To maintain, repair, replace, reconstruct, add to and operate the Condominium Property and/or Association Property, and other property acquired or leased by the Association.
 - (d) To purchase insurance upon the Condominium Property and Association Property and insurance for the protection of the Association, its officers, directors and Unit Owners.
 - (e) To make and amend reasonable rules and regulations for the maintenance, conservation and use of the Condominium Property and Association Property and for the health, comfort, safety and welfare of the Unit Owners.
 - (f) To approve or disapprove the leasing, transfer, ownership and possession of Units as may be provided by the Declaration.
 - (g) To enforce by legal means the provisions of the Act, the Declaration, these Articles, the By-Laws, and the rules and regulations for the use of the Condominium Property and Association Property.
 - (h) To contract for the management and maintenance of the Condominium Property and/or Association Property and to authorize a management agent (which may be an affiliate of the Developer) to assist the Association in carrying out its powers and duties by performing such functions as the submission of proposals, collection of Assessments, preparation of records, enforcement of rules and maintenance, repair and replacement of the Common Elements and Association Property with such funds as shall be made available by the Association for such purposes. The Association and its officers shall, however, retain at all times the powers and duties granted by the Condominium Act, including, but not limited to, the making of Assessments, promulgation of rules and execution of contracts on behalf of the Association.
 - (i) To employ personnel to perform the services required for the proper operation of the Condominium and the Association Property.
 - (j) To execute all documents or consents, on behalf of all Unit Owners (and their mortgagees), required by all governmental and/or quasi-governmental agencies in connection with land use and development matters (including, without limitation, plats, waivers of plat, unities of title, covenants in lieu thereof, etc.), and in that regard, each Owner, by acceptance of the deed to such Owner's Unit, appoints and designates the Board of Directors of the Association as such Owner's agent and attorney-in-fact to execute, any and all such documents or consents.
- 5.3 Association Property. All funds and the title to all properties acquired by the Association and their proceeds shall be held for the benefit and use of the members in accordance with the provisions of the Declaration, these Articles and the By-Laws.
- 5.4 Distribution of Income; Dissolution. The Association shall not pay a dividend to its members and shall make no distribution of income to its members, directors or officers, and upon dissolution, all assets of the Association shall be transferred only to another non-profit corporation or a public agency or as otherwise authorized by the Florida Not For Profit Corporation Act (Chapter 617, Florida Statutes).
- 5.5 Limitation. The powers of the Association shall be subject to and shall be exercised in accordance with the provisions hereof and of the Declaration, the By-Laws and the Act, provided that in the event of conflict, the provisions of the Act shall control over those of the Declaration and By-Laws.

ARTICLE 6
MEMBERS

- 6.1 Membership. The members of the Association shall consist of all of the record title owners of Units in the Condominium from time to time, and after termination of the Condominium, shall also consist of those who were members at the time of such termination, and their successors and assigns.
- 6.2 Assignment. The share of a member in the funds and assets of the Association cannot be assigned, hypothecated or transferred in any manner except as an appurtenance to the Unit for which that share is held.
- 6.3 Voting. On all matters upon which the membership shall be entitled to vote, there shall be only one vote for each Unit. All votes shall be exercised or cast in the manner provided by the Declaration and By-Laws. Any person or entity owning more than one Unit shall be entitled to cast the aggregate number of votes attributable to all Units owned.
- 6.4 Meetings. The By-Laws shall provide for an annual meeting of members, and may make provision for regular and special meetings of members other than the annual meeting.

ARTICLE 7
TERM OF EXISTENCE

The Association shall have perpetual existence.

ARTICLE 8
INCORPORATOR

The name and address of the Incorporator of this Corporation is:

NAME

Andrew Chesnick

ADDRESS

19111 Collins Avenue
Sunny Isles Beach, FL 33160

ARTICLE 9
OFFICERS

The affairs of the Association shall be administered by the officers holding the offices designated in the By-Laws. The officers shall be elected by the Board of Directors of the Association at its first meeting following the annual meeting of the members of the Association and shall serve at the pleasure of the Board of Directors. The By-Laws may provide for the removal from office of officers, for filling vacancies and for the duties and qualifications of the officers. The names and addresses of the officers who shall serve until their successors are designated by the Board of Directors are as follows:

President:

Andrew Chesnick

19111 Collins Avenue
Sunny Isles Beach, FL 33160

Vice President/Treasurer:

Angel Hernandez

19111 Collins Avenue
Sunny Isles Beach, FL 33160

Secretary-Treasurer:

Marty Vitkovitch

19111 Collins Avenue
Sunny Isles Beach, FL 33160

ARTICLE 10
DIRECTORS

- 10.1 Number and Qualification. The property, business and affairs of the Association shall be managed by a board consisting of the number of directors determined in the manner provided by the By-Laws, but which shall consist of not less than three (3) directors. Directors need not be members of the Association.
- 10.2 Duties and Powers. All of the duties and powers of the Association existing under the Act, the Declaration, these Articles and the By-Laws shall be exercised exclusively by the Board of Directors, its agents, contractors or employees, subject only to approval by Unit Owners when such approval is specifically required.
- 10.3 Election; Removal. Directors of the Association shall be elected at the annual meeting of the members in the manner determined by and subject to the qualifications set forth in the By-Laws. Directors may be removed and vacancies on the Board of Directors shall be filled in the manner provided by the By-Laws.
- 10.4 Term of Developer's Directors. The Developer of the Condominium shall appoint the members of the first Board of Directors and their replacements who shall hold office for the periods described in the By-Laws.
- 10.5 First Directors. The names and addresses of the members of the first Board of Directors who shall hold office until their successors are elected and have taken office, as provided in the By-Laws, are as follows:

<u>NAME</u>	<u>ADDRESS</u>
Andrew Chesnick	19111 Collins Avenue Sunny Isles Beach, FL 33160
Angel Hernandez	19111 Collins Avenue Sunny Isles Beach, FL 33160
Marty Vitkovitch	19111 Collins Avenue Sunny Isles Beach, FL 33160

- 10.6 Standards. A Director shall discharge his duties as a director, including any duties as a member of a Committee: in good faith; with the care an ordinary prudent person in a like position would exercise under similar circumstances; and in a manner reasonably believed to be in the best interests of the Association. Unless a Director has knowledge concerning a matter in question that makes reliance unwarranted, a Director, in discharging his duties, may rely on information, opinions, reports or statements, including financial statements and other data, if prepared or presented by: one or more officers or employees of the Association whom the Director reasonably believes to be reasonable and competent in the manners presented; legal counsel, public accountants or other persons as to matters the Director reasonably believes are within the persons' professional or expert competence; or a Committee of which the Director is not a member if the Director reasonably believes the Committee merits confidence. A Director is not liable for any action taken as a director, or any failure to take action, if he performed the duties of his office in compliance with the foregoing standards.

ARTICLE 11
INDEMNIFICATION

- 11.1 Indemnitees. The Association shall indemnify any person who was or is a party to any proceeding (other than an action by, or in the right of, the Association) by reason of the fact that he is or was a director, officer, employee or agent (each, an "Indemnitee") of the Association, against liability incurred in connection with such proceeding, including any appeal thereof, if he acted in good faith and in a manner he reasonably believed to be in, or not opposed to, the best interests of the Association and, with respect to any criminal action or proceeding, had no reasonable cause to believe his conduct was unlawful. The termination of any proceeding by judgment, order, settlement, or conviction or upon a plea of nolo

contendere or its equivalent shall not, of itself, create a presumption that the person did not act in good faith and in a manner which he reasonably believed to be in, or not opposed to, the best interests of the Association or, with respect to any criminal action or proceeding, had reasonable cause to believe that his conduct was unlawful.

- 11.2 Indemnification. The Association shall indemnify any person, who was or is a party to any proceeding by or in the right of the Association to procure a judgment in its favor by reason of the fact that he is or was a director, officer, employee, or agent of the Association against expenses and amounts paid in settlement not exceeding, in the judgment of the board of directors, the estimated expense of litigating the proceeding to conclusion, actually and reasonably incurred in connection with the defense or settlement of such proceeding, including any appeal thereof. Such indemnification shall be authorized if such person acted in good faith and in a manner he reasonably believed to be in, or not opposed to, the best interests of the Association, except that no indemnification shall be made under this subsection in respect of any claim, issue, or matter as to which such person shall have been adjudged to be liable unless, and only to the extent that, the court in which such proceeding was brought, or any other court of competent jurisdiction, shall determine upon application that, despite the adjudication of liability but in view of all circumstances of the case, such person is fairly and reasonably entitled to indemnity for such expenses which such court shall deem proper.
- 11.3 Indemnification for Expenses. To the extent that a director, officer, employee, or agent of the Association has been successful on the merits or otherwise in defense of any proceeding referred to in subsection 11.1 or 11.2, or in defense of any claim, issue, or matter therein, he shall be indemnified against expenses actually and reasonably incurred by him in connection therewith.
- 11.4 Determination of Applicability. Any indemnification under subsection 11.1 or subsection 11.2, unless pursuant to a determination by a court, shall be made by the Association only as authorized in the specific case upon a determination that indemnification of the director, officer, employee, or agent is proper under the circumstances because he has met the applicable standard of conduct set forth in subsection 11.1 or subsection 11.2. Such determination shall be made:
- (a) By the board of directors by a majority vote of a quorum consisting of directors who were not parties to such proceeding;
 - (b) If such a quorum is not obtainable or, even if obtainable, by majority vote of a Committee duly designated by the Board of Directors (in which directors who are parties may participate) consisting solely of two or more Directors not at the time parties to the proceeding;
 - (c) By independent legal counsel:
 - 1. selected by the Board of Directors prescribed in paragraph (a) or the committee prescribed in paragraph (b); or
 - 2. if a quorum of the Directors cannot be obtained for paragraph (a) and the Committee cannot be designated under paragraph (b), selected by majority vote of the full Board of Directors (in which Directors who are parties may participate); or
 - (d) By a majority of the voting interests of the members of the Association who were not parties to such proceeding.
- 11.5 Determination Regarding Expenses. Evaluation of the reasonableness of expenses and authorization of indemnification shall be made in the same manner as the determination that indemnification is permissible. However, if the determination of permissibility is made by independent legal counsel, persons specified by paragraph 11.4(c) shall evaluate the reasonableness of expenses and may authorize indemnification.
- 11.6 Advancing Expenses. Expenses incurred by an officer or director in defending a civil or criminal proceeding may be paid by the Association in advance of the final disposition of such proceeding upon receipt of an undertaking by or on behalf of such director or officer to repay such amount if he is ultimately found not to be

entitled to indemnification by the Association pursuant to this section. Expenses incurred by other employees and agents may be paid in advance upon such terms or conditions that the Board of Directors deems appropriate.

- 11.7 Exclusivity; Exclusions. The indemnification and advancement of expenses provided pursuant to this section are not exclusive, and the Association may make any other or further indemnification or advancement of expenses of any of its directors, officers, employees, or agents, under any bylaw, agreement, vote of shareholders or disinterested directors, or otherwise, both as to action in his official capacity and as to action in another capacity while holding such office. However, indemnification or advancement of expenses shall not be made to or on behalf of any director, officer, employee, or agent if a judgment or other final adjudication establishes that his actions, or omissions to act, were material to the cause of action so adjudicated and constitute:
- (a) A violation of the criminal law, unless the director, officer, employee, or agent had reasonable cause to believe his conduct was lawful or had no reasonable cause to believe his conduct was unlawful;
 - (b) A transaction from which the director, officer, employee, or agent derived an improper personal benefit; or
 - (c) Willful misconduct or a conscious disregard for the best interests of the Association in a proceeding by or in the right of the Association to procure a judgment in its favor or in a proceeding by or in the right of the members of the Association.
- 11.8 Continuing Effect. Indemnification and advancement of expenses as provided in this section shall continue as, unless otherwise provided when authorized or ratified, to a person who has ceased to be a director, officer, employee, or agent and shall inure to the benefit of the heirs, executors, and administrators of such a person, unless otherwise provided when authorized or ratified.
- 11.9 Application to Court. Notwithstanding the failure of a Association to provide indemnification, and despite any contrary determination of the Board or of the members in the specific case, a director, officer, employee, or agent of the Association who is or was a party to a proceeding may apply for indemnification or advancement of expenses, or both, to the court conducting the proceeding, to the circuit court, or to another court of competent jurisdiction. On receipt of an application, the court, after giving any notice that it considers necessary, may order indemnification and advancement of expenses, including expenses incurred in seeking court-ordered indemnification or advancement of expenses, if it determines that:
- (a) The director, officer, employee, or agent is entitled to mandatory indemnification under subsection 11.3, in which case the court shall also order the Association to pay the director reasonable expenses incurred in obtaining court-ordered indemnification or advancement of expenses;
 - (b) The director, officer, employee, or agent is entitled to indemnification or advancement of expenses, or both, by virtue of the exercise by the Association of its power pursuant to subsection 11.7; or
 - (c) The director, officer, employee, or agent is fairly and reasonably entitled to indemnification or advancement of expenses, or both, in view of all the relevant circumstances, regardless of whether such person met the standard of conduct set forth in subsection 11.1, subsection 11.2, or subsection 11.7. unless (a) a court of competent jurisdiction determines, after all available appeals have been exhausted or not pursued by the proposed indemnitee, that he did not act in good faith or acted in a manner he reasonably believed to be not in, or opposed to, the best interest of the Association, and, with respect to any criminal action or proceeding, that he had reasonable cause to believe his conduct was unlawful, and (b) such court further specifically determines that indemnification should be denied. The termination of any proceeding by judgment, order, settlement, conviction or upon a plea of nolo contendere or its equivalent shall not, of itself, create a presumption that the person did not act in good faith or did act in a manner which he reasonably believed to be not in, or opposed to, the best interest of the Association,

and, with respect to any criminal action or proceeding, that he had reasonable cause to believe that his conduct was unlawful.

- 11.10 Definitions. For purposes of this Article, the term "expenses" shall be deemed to include attorneys' fees, including those for any appeals; the term "liability" shall be deemed to include obligations to pay a judgment, settlement, penalty, fine, and expenses actually and reasonably incurred with respect to a proceeding; the term "proceeding" shall be deemed to include any threatened, pending, or completed action, suit, or other type of proceeding, whether civil, criminal, administrative or investigative, and whether formal or informal; and the term "agent" shall be deemed to include a volunteer; the term "serving at the request of the Association" shall be deemed to include any service as a director, officer, employee or agent of the Association that imposes duties on such persons.
- 11.11 Amendment. Anything to the contrary herein notwithstanding, no amendment to the provisions of this Article shall be applicable as to any party eligible for indemnification hereunder who has not given his prior written consent to such amendment.

ARTICLE 12 BY-LAWS

The first By-Laws of the Association shall be adopted by the Board of Directors and may be altered, amended or rescinded in the manner provided in the By-Laws and the Declaration.

ARTICLE 13 AMENDMENTS

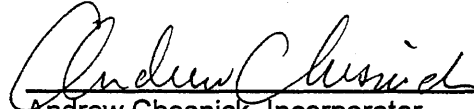
Amendments to these Articles shall be proposed and adopted in the following manner:

- 13.1 Notice. Notice of a proposed amendment shall be included in the notice of any meeting at which the proposed amendment is to be considered and shall be otherwise given in the time and manner provided in Chapter 617, Florida Statutes. Such notice shall contain the proposed amendment or a summary of the changes to be affected thereby.
- 13.2 Adoption. Amendments shall be proposed and adopted in the manner provided in Chapter 617, Florida Statutes and in the Act (the latter to control over the former to the extent provided for in the Act).
- 13.3 Limitation. No amendment shall make any changes in the qualifications for membership, nor in the voting rights or property rights of members, nor any changes in Sections 5.3, 5.4 or 5.5 or the Article entitled "Powers", without the approval in writing of all members and the joinder of all record owners of mortgages upon Units. No amendment shall be made that is in conflict with the Act, the Declaration or the By-Laws, nor shall any amendment make any changes which would in any way affect any of the rights, privileges, powers or options herein provided in favor of or reserved to the Developer and/or Institutional First Mortgagees, unless the Developer and/or the Institutional First Mortgagees, as applicable, shall join in the execution of the amendment. No amendment to this paragraph 13.3 shall be effective.
- 13.4 Developer Amendments. To the extent lawful, the Developer may amend these Articles consistent with the provisions of the Declaration allowing certain amendments to be effected by the Developer alone.
- 13.5 Recording. A copy of each amendment shall be filed with the Secretary of State pursuant to the provisions of applicable Florida law, and a copy certified by the Secretary of State shall be recorded in the public records of Dade County, Florida with an identification on the first page thereof of the book and page of said public records where the Declaration was recorded which contains, as an exhibit, the initial recording of these Articles.

ARTICLE 14
INITIAL REGISTERED OFFICE;
ADDRESS AND NAME OF REGISTERED AGENT

The initial registered office of this corporation shall be at 2828 Coral Way, PH Suite, Miami, Florida 33145, with the privilege of having its office and branch offices at other places within or without the State of Florida. The initial registered agent at that address shall be Andrew Chesnick.

IN WITNESS WHEREOF, the Incorporator has affixed his signature the day and year set forth below.



Andrew Chesnick, Incorporator

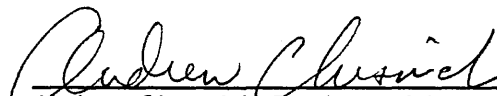
Date: May 7, 2001

CERTIFICATE DESIGNATING PLACE OF BUSINESS OR DOMICILE FOR THE SERVICE OF
PROCESS WITHIN THIS STATE, NAMING AGENT UPON WHOM PROCESS MAY BE
SERVED.

In compliance with the laws of Florida, the following is submitted:

First -- That desiring to organize under the laws of the State of Florida with its principal
office, as indicated in the foregoing articles of incorporation, in the County of Miami-Dade, State
of Florida, the Association named in the said articles has named Andrew Chesnick, located at
2828 Coral Way, PH Suite, Miami, Florida 33145, as its statutory registered agent.

Having been named the statutory agent of said Association at the place designated in
this certificate, I am familiar with the obligations of that position, and hereby accept the same
and agree to act in this capacity, and agree to comply with the provisions of Florida law relative
to keeping the registered office open.


Andrew Chesnick, Registered Agent

DATED this 7 day of May, 2001.

FILED
01 MAY 11 PM 2:13
SECRETARY OF STATE
TALLAHASSEE, FLORIDA

Exhibit "C"

06/25/2001 08:30 3058584760

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METROPOLITAN DADE COUNTY, FLORIDA



ENVIRONMENTAL RESOURCES MANAGEMENT
WATER MANAGEMENT DIVISION
WATER CONTROL SECTION
33 S.W. 2nd AVENUE SUITE 200
MIAMI, FLORIDA 33130-1540
(305) 372-6681

DEPARTMENT OF ENVIRONMENTAL
RESOURCES MANAGEMENT

Construction Completion / Construction Certification

PROJECT: OCEAN TWO CONDOMINIUM

GENERAL PERMIT NO.: 13 - 01329-P - DA

LOCATION: DADE COUNTY, S 02 / T 52 S / R 42 E

I HEREBY NOTIFY THE DERM WATER CONTROL SECTION OF THE COMPLETION OF CONSTRUCTION OF ALL THE COMPONENTS OF THE SURFACE WATER MANAGEMENT FACILITIES FOR THE ABOVE REFERENCED PROJECT AND CERTIFY THAT THEY HAVE BEEN CONSTRUCTED IN SUBSTANTIAL CONFORMANCE WITH THE PLANS AND SPECIFICATIONS PERMITTED BY THE DERM. [A COPY OF THE APPROVED PERMIT DRAWINGS IS ATTACHED WITH DEVIATIONS NOTED, IF APPLICABLE.] I HEREBY AFFIX MY SEAL THIS DAY OF June 21, 2001, 1901 (REFERENCE 373.117, 373.419, F.S.).

Kevin M. McCabe
Engineer's Signature and Seal

6-21-01
Date

KEVIN M. MCCABE PE
Name (Please Print)
FL Registration No. #36841

06/25/2001 08:30 3058584750
140 14.02 FAX 305 372 8489

EDC CORP
WATER CONTROL

PAGE 02/10

002

MIAMI-DADE COUNTY, FLORIDA



January 13, 2000

ENVIRONMENTAL RESOURCES MANAGEMENT
WATER CONTROL SECTION
SUITE 201
33 S.W. 2nd AVENUE
MIAMI, FLORIDA 33130-1541
(305) 372-6688

Mr. Tom Daly
Michael Dezer, Neomi Dezer, Dezer 291 Properties, LLC
19333 Collins Avenue, Suite 308
Sunny Isles Beach, Florida 33160

RE: SURFACE WATER MANAGEMENT STANDARD GENERAL PERMIT NO. 13-01329-P

DATE ISSUED: JANUARY 7, 2000

PERMITTEE: MICHAEL DEZER, NEOMI DEZER, DEZER 291 PROPERTIES, LLC

PROJECT DESCRIPTION: THE CONSTRUCTION OF A SURFACE WATER MANAGEMENT SYSTEM SERVING 5.61 ACRES RESIDENTIAL DEVELOPMENT KNOWN AS OCEAN TWO CONDOMINIUM.

PROJECT LOCATION: 19101 COLLINS AVENUE, MIAMI-DADE COUNTY, S02/T52S/R42E

PERMIT DURATION: FIVE YEARS FROM THE DATE ISSUED TO COMPLETE CONSTRUCTION OF THE SURFACE WATER MANAGEMENT SYSTEM AS AUTHORIZED HEREIN, IN ACCORDANCE WITH RULE 40E-4.32 FAC.

Dear Mr. Daly:

This is to notify you of the Department's action concerning Permit Application No. 991103-2-DA dated November 3, 1999. This action is taken pursuant to Rule 40E-1.606 and Chapter 40E-40, Florida Administrative Code (F.A.C.).

Based on the information provided, Miami-Dade County and District rules have been adhered to and a Surface Water Management General Permit is in effect for this project subject to:

1. Not receiving a filed request for a Chapter 120, Florida Statutes, administrative hearing.
2. the attached Standard Limiting Conditions,
3. the attached Special Conditions, and
4. the attached set of approved plans.

06/25/2001 08:30 3058584760

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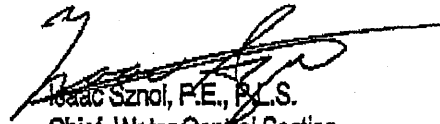
Ocean Two Condominium
January 13, 2000
Page 2

Should you object to any of these conditions, please refer to the attached "Notice of Rights" which addresses the procedures to be followed if you desire a public hearing or other review of the proposed agency action. Please contact this office if you have any questions concerning this matter. If we do not hear from you in accordance with the "Notice of Rights", we will assume that you concur with the Miami-Dade County DERM's action.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a "Notice of Rights" has been mailed to this addressee no later than 5.00 p.m. this 13th day of January, 2000, in accordance with Section 120.6(3), Florida Statutes.

Sincerely,


Isaac Sznoi, P.E., P.L.S.
Chief, Water Control Section

Cc: Lee Hodges
EDC Corporation
2250 South Dixie Hwy., Suite 2
Coconut Grove, Florida 33133

CERTIFIED MAIL NO.:
RETURN RECEIPT REQUESTED

06/25/2001 08:30 3058584760

EDC CORP

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Ocean Two Condominium
January 13, 2000
Page 3

SPECIAL CONDITIONS

- 1. THE LOWEST ALLOWABLE GRADE ON SITE SHALL BE +6.50 FEET NGVD AT INLET GRATE.**
- 2. THE MINIMUM ADJACENT GRADE ON SITE SHALL BE +7.33 FEET NGVD.**
- 3. THE MINIMUM BUILDING FINISH FLOOR ELEVATION ON SITE SHALL BE +8.00 FEET NGVD. PROPOSED BUILDING FINISH FLOOR ELEVATION IS +13.33 FEET NGVD.**
- 4. PROVIDE A MINIMUM FOUR DRAINAGE WELLS FOR THE RETENTION OF THE 5-YEAR STORM.**
- 5. THE DEPARTMENT RESERVES THE RIGHT TO REQUIRE THAT ADDITIONAL WATER QUALITY TREATMENT METHODS BE INCORPORATED INTO THE DRAINAGE SYSTEM IF SUCH MEASURES ARE SHOWN TO BE NECESSARY.**
- 6. THE PERMITTEE SHALL BE RESPONSIBLE TO ESTABLISH ADEQUATE MEASURES AND CONTROL DURING CONSTRUCTION TO ENSURE THAT SEDIMENTATION AND/OR TURBIDITY PROBLEMS SHALL NOT IMPACT ADJACENT SITE, PUBLIC RIGHT-OF-WAYS AND THEIR DRAINAGE FACILITIES. SAID MEASURES SHALL BE USED ALSO TO PREVENT SILTATION OF THE CONSTRUCTED DRAINAGE SYSTEM DURING SITE DEVELOPMENT.**
- 7. SILT SCREENS, HAY BALES OR OTHER SEDIMENT CONTROL MEASURES SHALL BE UTILIZED AND VEGETATED IMMEDIATELY AFTER CONSTRUCTION TO PREVENT EROSION INTO ADJACENT PROPERTIES.**
- 8. IN ADDITION, THE PERMITTEE HEREBY AGREES TO ALLOW ACCESS TO THE ENVIRONMENTAL RESOURCES MANAGEMENT, IF SO DESIRED FOR INSPECTION, AT ANY TIME AFTER THE COMPLETION OF THE JOB AND CLOSING OF THIS PERMIT.**
- 9. FACILITIES OTHER THAN THOSE STATED HEREIN SHALL NOT BE CONSTRUCTED WITHOUT AN APPROVED MODIFICATION OF THIS PERMIT.**

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Ocean Two Condominium
January 13, 2000
Page 4

SPECIAL CONDITIONS (CONTINUED)

10. THE OPERATION OF THE SURFACE WATER MANAGEMENT SYSTEM SHALL BE THE RESPONSIBILITY OF THE OCEAN TWO CONDOMINIUM ASSOCIATION, INC.
11. ANY FUTURE CHANGES IN LAND USE MAY REQUIRE A SURFACE WATER MANAGEMENT PERMIT MODIFICATION AND ADDITIONAL ENVIRONMENTAL REVIEW BY WATER CONTROL STAFF. PRIOR TO THE PERMITTEE INSTITUTING ANY FUTURE CHANGES NOT AUTHORIZED BY THIS PERMIT, THE PERMITTEE SHALL NOTIFY THE DERM OF SUCH INTENTIONS FOR A DETERMINATION OF ANY NECESSARY PERMIT MODIFICATIONS.
12. A PRECONSTRUCTION MEETING WITH PERMITTEE, CONTRACTOR AND DERM REPRESENTATIVE IS REQUIRED AND MUST BE SCHEDULED 10 DAYS PRIOR TO START OF WORK. CONTACT MAHMOUD ABDALLAH AT (305) 372-6681 TO ARRANGE THIS MEETING.

372-6675

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Form 0537 South Florida Water Management District
3/96
**GENERAL PERMIT
NOTICE OF RIGHTS**

This Notice of Rights is intended to inform the recipient of the administrative and judicial review which may be available as mandated by section 120.60(3), Florida Statutes. Be advised that although this notice is intended to be comprehensive, the review procedures set forth herein have been the subject of judicial construction and interpretation which may affect the administrative or judicial review available. Recipients are therefore advised to become familiar with Chapters 120 and 373, Florida Statutes, and the judicial interpretation of the provisions of these chapters.

1. If a substantially affected person objects to the staff's recommendation, that person has the right to request an administrative hearing on the proposed agency action. The substantially affected person may request either a formal or an informal hearing, as set forth below. Failure to comply with the prescribed time periods shall constitute a waiver of the right to a hearing.
2. If a substantially affected person believes a genuine issue of material fact is in dispute, that person may request a formal hearing pursuant to section 120.57(1), Florida Statutes, by filing a petition not later than:
 - a. IF NOTICE OF THE APPLICATION WAS PUBLISHED BY THE APPLICANT, within fourteen (14) days after mailing of the proposed agency action or
 - b. IF NOTICE OF THE APPLICATION WAS NOT PUBLISHED, within fourteen (14) days after receipt of actual notice.

The request for a section 120.57(1), F.S., formal hearing must comply with the requirements of Rule 406-1.521, Florida Administrative Code, a copy of which is attached. Petitions are deemed filed upon receipt by the District. Failure to substantially comply with the provisions of Rule 406-1.521, Florida Administrative Code, shall constitute a waiver of the right to a 120.57(1) hearing. If a petition for administrative hearing is not timely filed, the staff's proposed agency will automatically mature into final agency action.
3. If a substantially affected person believes that no issues of material fact are in dispute, that person may request an informal hearing pursuant to section 120.57(2), F.S., by filing a petition for hearing not later than:
 - a. IF NOTICE OF THE APPLICATION WAS PUBLISHED BY THE APPLICANT, within fourteen (14) days after mailing of the proposed agency action or
 - b. IF NOTICE OF THE APPLICATION WAS NOT PUBLISHED, within fourteen (14) days after receipt of actual notice.

A request for informal hearing shall be considered as a waiver of the right to request a formal section 120.57(1), F.S., hearing. A request for a section 120.57(1) F.S., formal hearing not in substantial compliance with the provisions of rule 406-1.521, F.A.C., may be considered by the District as a request for informal hearing. If a petition for administrative hearing is not timely filed, the staff's proposed agency action will automatically mature into final agency action.
4. Pursuant to section 373.114, Florida Statutes, a party to the proceeding below may seek review of a Final Order rendered on the permit application before the Land and Water Adjudicatory Commission, as provided therein. Review under this section is initiated by filing a request for review with the Land and Water Adjudicatory Commission and serving a copy of the Department of Environmental Protection and any person named in the order within 20 days after rendering of the District's Order. However, when the order to be reviewed has statewide or regional significance, as determined by the Land and Water Adjudicatory Commission within 60 days after receipt of a request for review, the commission may accept a request for review from any affected person within 30 days after the rendering of the order. Review under section 373.114, Florida Statutes, is limited solely to a determination of consistency with the provisions and purposes of Chapter 373, Florida Statutes. This review is appellate in nature and limited to the record below.
5. A party who is adversely affected by final agency action on the permit application is entitled to judicial review in the District Court of Appeal pursuant to section 120.68, Florida Statutes, as provided therein. Review under Section 120.68, Florida Statutes in the District Court of Appeal is initiated by filing a petition in the appropriate District Court of Appeal in accordance with Florida rule of appellate procedure 9.110. The Notice of Appeal must be filed within 30 days of the final agency action.
6. Section 373.617(2), Florida Statutes, provides:

Any person substantially affected by a final action of any agency with respect to a permit may seek review within 30 days of the rendering of such decision and request monetary damages and other relief in the circuit court in the judicial circuit in which the affected property is located; however, circuit court review shall be confined solely to determining whether final agency action is an unreasonable exercise of the state's police power constituting a taking without just compensation. Review of final agency action for the purpose of determining whether the action is in accordance with existing statutes or rules and based on competent substantial evidence shall proceed in accordance with Chapter 120.
7. Please be advised that exhaustion of administrative remedies is generally a prerequisite to appeal to the District Court of Appeal or the seeking of Circuit Court review of final agency action by the District on the permit application. There are, however, exceptions to the exhaustion requirement. The applicant is advised to consult the case law as to the requirements of exhaustion exceptions.

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LIMITING CONDITIONS

1. THE PERMITTEE SHALL IMPLEMENT THE WORK AUTHORIZED IN A MANNER AS TO MINIMIZE ANY ADVERSE IMPACT OF THE WORKS ON FISH, WILDLIFE, NATURAL ENVIRONMENTAL VALUES, AND WATER QUALITY. THE PERMITTEE SHALL INSTITUTE NECESSARY MEASURES DURING THE CONSTRUCTION PERIOD, INCLUDING FULL COMPACTION OF ANY FILL MATERIAL PLACED AROUND NEWLY INSTALLED STRUCTURES, TO REDUCE EROSION, TURBIDITY, NUTRIENT LOADING AND SEDIMENTATION IN THE RECEIVING WATERS.
2. WATER QUALITY DATA FOR THE WATER DISCHARGED FROM THE PERMITTEE'S PROPERTY OR INTO SURFACE WATERS OF THE STATE WILL BE SUBMITTED TO THE DADE COUNTY DERM AS REQUIRED BY SECTION 5.9, "BASIS REVIEW FOR SURFACE WATER MANAGEMENT PERMIT APPLICATIONS WITHIN SOUTH FLORIDA WATER MANAGEMENT DISTRICT - MARCH, 1994." PARAMETERS TO BE MONITORED MAY INCLUDE THOSE LISTED IN CHAPTER 62-302, F.A.C. IF WATER QUALITY DATA IS REQUIRED, THE PERMITTEE SHALL PROVIDE DATA ON VOLUMES OF WATER DISCHARGED, INCLUDING TOTAL VOLUME DISCHARGED DURING THE DAYS OF SAMPLING AND TOTAL MONTHLY DISCHARGES FROM THE PROPERTY OR INTO SURFACE OF THE STATE.
3. THIS PERMIT SHALL NOT RELIEVE THE PERMITTEE OF ANY OBLIGATION TO OBTAIN NECESSARY FEDERAL, STATE, LOCAL OR SPECIAL DISTRICT APPROVALS.
4. THE OPERATION PHASE OF THIS PERMIT WILL NOT BECOME EFFECTIVE UNTIL DADE COUNTY DERM'S ACCEPTANCE OF CERTIFICATION OF THE COMPLETE SURFACE WATER MANAGEMENT SYSTEM.
5. ALL ROAD ELEVATIONS SHALL BE SET IN ACCORDANCE WITH THE CRITERIA SET FORTH IN CHAPTER 11 C OF THE METROPOLITAN DADE COUNTY CODE.
6. ALL BUILDING FLOOR ELEVATIONS SHALL BE SET IN ACCORDANCE WITH THE CRITERIA SET FORTH IN SECTION 6.4, "BASIS OF REVIEW FOR SURFACE WATER MANAGEMENT PERMIT APPLICATIONS WITHIN SOUTH FLORIDA WATER MANAGEMENT DISTRICT - MARCH, 1994".
7. OFF-SITE DISCHARGES DURING CONSTRUCTION AND DEVELOPMENT WILL BE MADE ONLY THROUGH THE FACILITIES AUTHORIZED BY THIS PERMIT.
8. A PERMIT TRANSFER TO THE OPERATION PHASE SHALL NOT OCCUR UNTIL A RESPONSIBLE ENTITY MEETING THE REQUIREMENT IN SECTION 9.0, "BASIS OF REVIEW FOR SURFACE WATER MANAGEMENT PERMIT APPLICATIONS WITHIN SOUTH FLORIDA WATER MANAGEMENT DISTRICT - MARCH, 1994," HAS BEEN ESTABLISHED TO OPERATION AND MAINTAIN THE SYSTEM. THE ENTITY MUST BE PROVIDED WITH SUFFICIENT OWNERSHIP OR LEGAL INTEREST SO THAT IT HAS CONTROL OVER ALL WATER MANAGEMENT FACILITIES AUTHORIZED HEREIN.
9. THE PERMIT DOES NOT CONVEY TO THE PERMITTEE ANY PROPERTY RIGHT NOR ANY RIGHTS OR PRIVILEGES OTHER THAN THOSE SPECIFIED IN THE PERMIT AND CHAPTER 40E-4, FAC.
10. THE PERMITTEE SHALL HOLD AND SAVE DADE COUNTY HARMLESS FROM ANY AND ALL DAMAGES, CLAIMS, OR LIABILITIES WHICH MAY ARISE BY REASON OF THE CONSTRUCTION, OPERATION, MAINTENANCE OR USE OF ANY FACILITY AUTHORIZED BY THE PERMIT.
11. THIS PERMIT IS ISSUED BASED ON THE APPLICANT'S SUBMITTED INFORMATION WHICH REASONABLY DEMONSTRATES THAT ADVERSE WATER RESOURCE RELATED IMPACTS WILL NOT BE CAUSED BY THE COMPLETED PERMIT ACTIVITY. SHOULD

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LIMITING CONDITIONS
PAGE (2)

ANY ADVERSE IMPACTS CAUSED BY THE COMPLETED SURFACE WATER MANAGEMENT SYSTEM OCCUR, DERM WILL REQUIRE THE PERMITTEE TO PROVIDE APPROPRIATE MITIGATION TO DERM OR OTHER IMPACTED PARTY. DERM WILL REQUIRE THE PERMITTEE TO MODIFY THE SURFACE WATER MANAGEMENT SYSTEM, IF NECESSARY, TO ELIMINATE THE CAUSE OF THE ADVERSE IMPACTS.

12. WITHIN 30 DAYS OF ISSUANCE OF THIS PERMIT, THE PERMITTEE OR AUTHORIZED AGENT SHALL NOTIFY DERM (VIA THE SUPPLIED CONSTRUCTION COMMENCEMENT NOTICE OR EQUIVALENT) OF THE ACTUAL OR ANTICIPATED CONSTRUCTION START DATE AND THE EXPECTED COMPLETION DATE.
13. WHEN THE DURATION OF CONSTRUCTION EXCEEDS ONE YEAR, THE PERMITTEE OR AUTHORIZED AGENT SHALL SUBMIT CONSTRUCTION STATUS REPORTS ON AN ANNUAL BASIS (VIA THE SUPPLIED ANNUAL STATUS REPORT OR EQUIVALENT) BEGINNING ONE YEAR AFTER THE INITIAL COMMENCEMENT OF CONSTRUCTION.
14. WITHIN 30 DAYS AFTER COMPLETION OF CONSTRUCTION OF THE SURFACE WATER MANAGEMENT SYSTEM, THE PERMITTEE OR AUTHORIZED AGENT SHALL FILE A WRITTEN STATEMENT OF COMPLETION AND CERTIFICATION BY A FLORIDA REGISTERED PROFESSIONAL ENGINEER. THESE STATEMENTS MUST SPECIFY THE ACTUAL DATE OF CONSTRUCTION COMPLETION AND MUST CERTIFY THAT ALL FACILITIES HAVE BEEN CONSTRUCTED IN SUBSTANTIAL CONFORMANCE WITH THE PLANS AND SPECIFICATIONS APPROVED BY DERM (VIA THE SUPPLIED CONSTRUCTION COMPLETION/CONSTRUCTION CERTIFICATION OR EQUIVALENT). THE CONSTRUCTION COMPLETION CERTIFICATION MUST INCLUDE, AT A MINIMUM, EXISTING ELEVATIONS, LOCATIONS AND DIMENSIONS OF THE COMPONENTS OF THE WATER MANAGEMENT FACILITIES. ADDITIONALLY, IF DEVIATIONS FROM THE APPROVED DRAWING ARE DISCOVERED DURING THE CERTIFICATION PROCESS, THE CERTIFICATION MUST BE ACCOMPANIED BY A COPY OF THE APPROVED PERMIT DRAWINGS WITH DEVIATIONS NOTED.
15. WITHIN 30 DAYS OF SALE, CONVEYANCE OR OTHER TRANSFER OF ANY OF THE LAND WHICH IS PROPOSED FOR DEVELOPMENT UNDER THE AUTHORIZATION OF THIS PERMIT, THE PERMITTEE SHALL NOTIFY DERM OF SUCH TRANSFER IN WRITING VIA EITHER FORM 0483, REQUEST FOR PERMIT TRANSFER; OR FORM 0920, REQUEST FOR TRANSFER OF SURFACE WATER MANAGEMENT CONSTRUCTION PHASE TO OPERATION PHASE (TO BE COMPLETED AND SUBMITTED BY THE OPERATING ENTITY), IN ACCORDANCE WITH SECTIONS 40E-1.6105 AND 40E-4.351, F.A.C.
16. A PRORATED SHARE OF SURFACE WATER MANAGEMENT RETENTION/DETENTION AREAS, SUFFICIENT TO PROVIDE THE REQUIRED FLOOD PROTECTION AND WATER QUALITY TREATMENT, MUST BE PROVIDED PRIOR TO OCCUPANCY OF ANY BUILDING OR RESIDENCE.
17. A STABLE, PERMANENT AND ACCESSIBLE ELEVATION REFERENCE SHALL BE ESTABLISHED ON OR WITHIN ONE HUNDRED (100) FEET OF ALL PERMITTED DISCHARGE STRUCTURES NO LATER THAN THE SUBMISSION OF THE CERTIFICATION REPORT. THE LOCATION OF THE ELEVATION REFERENCE MUST BE NOTED ON OR WITH THE CERTIFICATION REPORT.
18. IT IS THE RESPONSIBILITY OF THE PERMITTEE TO INSURE THAT ADVERSE OFF-SITE WATER RESOURCE RELATED IMPACTS DO NOT OCCUR DURING CONSTRUCTION.
19. THE PERMITTEE MUST OBTAIN A DEWATERING PERMIT PRIOR TO CONSTRUCTION DEWATERING.

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40E-1.521

Initiation of Formal Proceedings

(1) Initiation of formal proceedings shall be made by petition to the District. The term petition as used herein includes any application or other document which expresses a request for formal proceedings. Each petition should be printed, typewritten or otherwise duplicated in legible form on white paper or standard legal size. Unless printed, the impression shall be on one side of the paper only and lines shall be double-spaced and indented.

(2) All petitions filed under these rules shall contain:

- (a) The name and address of the District and the District's file or identification number, if known;
- (b) The name and address of the petitioner or petitioners;
- (c) An explanation of how each petitioner's substantial interests will be affected by the District's determination;
- (d) A statement of when and how petitioner received notice of the District's decision or intent to render a decision;
- (e) A statement of all disputed issues of material fact. If there are none, the petitioner must so indicate;
- (f) A concise statement of the ultimate facts which petitioner believes entitle petitioner to the relief sought as well as the rules and statutes which support petitioner's claim for relief;
- (g) A demand for the relief to which the petitioner deems himself entitled; and
- (h) Other information which the petitioner contends is material.

(3) Upon receipt of a petition for formal proceedings, the Office of Counsel shall review the petition for compliance with subsection (2). The Board shall accept those petitions in substantial compliance therewith, which have been timely filed, which establish that the petitioner is a substantially affected party, and which state a dispute which is within the jurisdiction of the District to resolve. If accepted, the Board shall designate the presiding officer of the administrative hearing. The District shall promptly give written notice to all parties of the action taken on the petition, and shall state with particularity its reasons therefor.

(4) If a petition is filed that does not substantially comply with the requirement of subsection (2) of this section, the District shall issue an order dismissing the petition with leave to file an amended petition complying with the requirements of this rule within the time period designated in the order. If an amended petition complying with this rule is not filed with the District Clerk within the designated time period, the petitioner's right to a processing under Section 120.57, Florida Statutes, is waived.

(5) If a valid petition is filed, with the consent of all parties and upon a showing of good cause, Board action on the petition pursuant to Section 120.57(1)(b) shall be waived. "Good cause" shall mean a set of circumstances unforeseen and outside of the control of the person requesting the waiver.

(6) When a valid petition for administrative hearing has been filed, the Board action shall defer consideration of the matter pending the completion of the administrative hearing and the submittal of a recommended order, and any exceptions to that order.

(7) If the Board designates a Hearing Officer assigned by the Division of Administrative Hearings as the presiding officer, the District Clerk shall forward the petition and all relevant materials filed with the District to the Division of Administrative Hearings, and shall notify all parties of its action.

Specific Authority 120.53, 373.044, 373.113 F.S. Law Implemented 120.53(1), 120.57, 373.113 F.S. History - new 8-3-81, formerly 16K-109.11, 16K-1.112(1) - (3), 16K-1.12, Amended 5-11-83.

CLERK NOTE:

FOR CONDOMINIUM PLANS SEE OFFICIAL

RECORDS CONDOMINIUM PLANS BK. 348 PAGE 12

HARVEY RUVIN, CLERK.

CIRCUIT & COUNTY COURTS

BY J. J. Spann D. C.

RECORDED IN OFFICIAL RECORDS BOOK
OF DADE COUNTY, FLORIDA
RECORD VERIFIED
HARVEY RUVIN
CLERK CIRCUIT COURT

Core 1
01 - 02Core 2
03 - 04

Unit No.	Type	Maint.	%	Unit No.	Type	Maint.	%	Unit No.	Type	Maint.	%	Unit No.	Type	Maint.	%		
41								41									
40								40									
39								39									
38								38									
37								37									
36								36									
35								35									
34								34	PH-3 / 3403	D	598.94	0.36860	PH-4 / 3404	E1	846.73	0.52110	
33								33	LPH-3 / 3303	D	598.94	0.36860	LPH-4 / 3304	E	679.69	0.41830	
32								32	3203	D	598.94	0.36860	3204	E	679.69	0.41830	
31								31	3103	D	598.94	0.36860	3104	E	679.69	0.41830	
30								30	3003	D	598.94	0.36860	3004	E	679.69	0.41830	
29								29	2903	D	598.94	0.36860	2904	E	679.69	0.41830	
28								28	2803	D	598.94	0.36860	2804	E	679.69	0.41830	
27								27	2703	D	598.94	0.36860	2704	E	679.69	0.41830	
26	PH-1 / 2601	F1	909.45	0.55970	PH-2 / 2602	C1	724.22	0.44570	26	2603	D	598.94	0.36860	2604	E	679.69	0.41830
25	LPH-1 / 2501	F	742.25	0.45680	LPH-2 / 2602	C	529.23	0.32570	25	2503	D	598.94	0.36860	2504	E	679.69	0.41830
24	2401	F	742.25	0.45680	2402	C	529.23	0.32570	24	2403	D	598.94	0.36860	2404	E	679.69	0.41830
23	2301	F	742.25	0.45680	2302	C	529.23	0.32570	23	2303	D	598.94	0.36860	2304	E	679.69	0.41830
22	2201	F	742.25	0.45680	2202	C	529.23	0.32570	22	2203	D	598.94	0.36860	2204	E	679.69	0.41830
21	2101	F	742.25	0.45680	2102	C	529.23	0.32570	21	2103	D	598.94	0.36860	2104	E	679.69	0.41830
20	2001	F	742.25	0.45680	2002	C	529.23	0.32570	20	2003	D	598.94	0.36860	2004	E	679.69	0.41830
19	1901	F	742.25	0.45680	1902	C	529.23	0.32570	19	1903	D	598.94	0.36860	1904	E	679.69	0.41830
18	1801	F	742.25	0.45680	1802	C	529.23	0.32570	18	1803	D	598.94	0.36860	1804	E	679.69	0.41830
17	1701	F	742.25	0.45680	1702	C	529.23	0.32570	17	1703	D	598.94	0.36860	1704	E	679.69	0.41830
16	1601	F	742.25	0.45680	1602	C	529.23	0.32570	16	1603	D	598.94	0.36860	1604	E	679.69	0.41830
15	1501	F	742.25	0.45680	1502	C	529.23	0.32570	15	1503	D	598.94	0.36860	1504	E	679.69	0.41830
14	1401	F	742.25	0.45680	1402	C	529.23	0.32570	14	1403	D	598.94	0.36860	1404	E	679.69	0.41830
12	1201	F	742.25	0.45680	1202	C	529.23	0.32570	12	1203	D	598.94	0.36860	1204	E	679.69	0.41830
11	1101	F	742.25	0.45680	1102	C	529.23	0.32570	11	1103	D	598.94	0.36860	1104	E	679.69	0.41830
10	1001	F	742.25	0.45680	1002	C	529.23	0.32570	10	1003	D	598.94	0.36860	1004	E	679.69	0.41830
9	901	F	742.25	0.45680	902	C	529.23	0.32570	9	903	D	598.94	0.36860	904	E	679.69	0.41830
8	801	F	742.25	0.45680	802	C	529.23	0.32570	8	803	D	598.94	0.36860	804	E	679.69	0.41830
7	701	F	742.25	0.45680	702	C	529.23	0.32570	7	703	D	598.94	0.36860	704	E	679.69	0.41830
6	601	F	742.25	0.45680	602	C	529.23	0.32570	6	603	D	598.94	0.36860	604	E	679.69	0.41830
5	501	F	742.25	0.45680	502	C	529.23	0.32570	5	503	D	598.94	0.36860	504	E	679.69	0.41830
4	401	F	742.25	0.45680	402	C	529.23	0.32570	4	403	D	598.94	0.36860	SPA	SPA		
3	301	F	742.25	0.45680	302	C	529.23	0.32570	3	303	D	598.94	0.36860	SPA	SPA		
2	201	F	742.25	0.45680	202	C	529.23	0.32570	2	203	D	598.94	0.36860	SPA	SPA		
1	101	F2	742.25	0.45680	102	C2	501.44	0.30860	1	103	D2	570.99	0.35140	POOL			
11,522.90				8,245.40				19,737.07				12,146.60					
LOBBY								LOBBY				70,486.05					
												12,233.50					

Core 3
05 - 06Core 4
07 - 08

Unit No.	Type	Maint.		Unit No.	Type	Maint.	%	Unit No.	Type	Maint.		Unit No.	Type	Maint.	%																		
41								41	PH-7 / 4107	C	529.23	0.32570	PH-8 / 4108	F1	909.45	0.55970																	
40								40	LPH-7 / 4007	C	529.23	0.32570	LPH-8 / 4008	F	741.25	0.45680																	
39								39	3907	C	529.23	0.32570	3908	F	742.25	0.45680																	
38								38	3807	C	529.23	0.32570	3808	F	742.25	0.45680																	
37								37	3707	C	529.23	0.32570	3708	F	742.25	0.45680																	
36								36	3607	C	529.23	0.32570	3608	F	742.25	0.45680																	
35								35	3507	C	529.23	0.32570	3508	F	742.25	0.45680																	
34	PH-5 / 3405	E1	846.73	0.52110	PH-6 / 3406	D1	738.19	0.45430	34	3407	C	529.23	0.32570	3408	F	742.25	0.45680																
33	LPH-5 / 3305	E	679.69	0.41830	LPH-6 / 3306	D	598.94	0.36860	33	3307	C	529.23	0.32570	3308	F	742.25	0.45680																
32	3205	E	679.69	0.41830	3206	D	598.94	0.36860	32	3207	C	529.23	0.32570	3208	F	742.25	0.45680																
31	3105	E	679.69	0.41830	3106	D	598.94	0.36860	31	3107	C	529.23	0.32570	3108	F	742.25	0.45680																
30	3005	E	679.69	0.41830	3006	D	598.94	0.36860	30	3007	C	529.23	0.32570	3008	F	742.25	0.45680																
29	2905	E	679.69	0.41830	2906	D	598.94	0.36860	29	2907	C	529.23	0.32570	2908	F	742.25	0.45680																
28	2805	E	679.69	0.41830	2806	D	598.94	0.36860	28	2807	C	529.23	0.32570	2808	F	742.25	0.45680																
27	2705	E	679.69	0.41830	2706	D	598.94	0.36860	27	2707	C	529.23	0.32570	2708	F	742.25	0.45680																
26	2605	E	679.69	0.41830	2606	D	598.94	0.36860	26	2607	C	529.23	0.32570	2608	F	742.25	0.45680																
25	2505	E	679.69	0.41830	2506	D	598.94	0.36860	25	2507	C	529.23	0.32570	2508	F	742.25	0.45680																
24	2405	E	679.69	0.41830	2406	D	598.94	0.36860	24	2407	C	529.23	0.32570	2408	F	742.25	0.45680																
23	2305	E	679.69	0.41830	2306	D	598.94	0.36860	23	2307	C	529.23	0.32570	2308	F	742.25	0.45680																
22	2205	E	679.69	0.41830	2206	D	598.94	0.36860	22	2207	C	529.23	0.32570	2208	F	742.25	0.45680																
21	2105	E	679.69	0.41830	2106	D	598.94	0.36860	21	2107	C	529.23	0.32570	2108	F	742.25	0.45680																
20	2005	E	679.69	0.41830	2006	D	598.94	0.36860	20	2007	C	529.23	0.32570	2008	F	742.25	0.45680																
19	1905	E	679.69	0.41830	1906	D	598.94	0.36860	19	1907	C	529.23	0.32570	1908	F	742.25	0.45680																
18	1805	E	679.69	0.41830	1806	D	598.94	0.36860	18	1807	C	529.23	0.32570	1808	F	742.25	0.45680																
17	1705	E	679.69	0.41830	1706	D	598.94	0.36860	17	1707	C	529.23	0.32570	1708	F	742.25	0.45680																
16	1605	E	679.69	0.41830	1606	D	598.94	0.36860	16	1607	C	529.23	0.32570	1608	F	742.25	0.45680																
15	1505	E	679.69	0.41830	1506	D	598.94	0.36860	15	1507	C	529.23	0.32570	1508	F	742.25	0.45680																
14	1405	E	679.69	0.41830	1406	D	598.94	0.36860	14	1407	C	529.23	0.32570	1408	F	742.25	0.45680																
12	1205	E	679.69	0.41830	1206	D	598.94	0.36860	12	1207	C	529.23	0.32570	1208	F	742.25	0.45680																
11	1105	E	679.69	0.41830	1106	D	598.94	0.36860	11	1107	C	529.23	0.32570	1108	F	742.25	0.45680																
10	1005	E	679.69	0.41830	1006	D	598.94	0.36860	10	1007	C	529.23	0.32570	1008	F	742.25	0.45680																
9	905	E	679.69	0.41830	906	D	598.94	0.36860	9	907	C	529.23	0.32570	908	F	742.25	0.45680																
8	805	E	679.69	0.41830	806	D	598.94	0.36860	8	807	C	529.23	0.32570	808	F	742.25	0.45680																
7	705	E	679.69	0.41830	706	D	598.94	0.36860	7	707	C	529.23	0.32570	708	F	742.25	0.45680																
6	605	E	679.69	0.41830	606	D	598.94	0.36860	6	607	C	529.23	0.32570	608	F	742.25	0.45680																
5	505	E	679.69	0.41830	506	D	598.94	0.36860	5	507	C	529.23	0.32570	508	F	742.25	0.45680																
4	405				406	D	598.94	0.36860	4	407	C	529.23	0.32570	408	F	742.25	0.45680																
3	305				306	D	598.94	0.36860	3	307	C	529.23	0.32570	308	F	742.25	0.45680																
2	205				206	D	598.94	0.36860	2	207	C	529.23	0.32570	208	F	742.25	0.45680																
1	SNACK BAR				106	D2	570.99	0.35140	1	107	C2	501.44	0.30860	108	F2	742.25	0.55970																
71,428.05				12.23350	19,876.32				12.23230	21,141.41				13.01090	29,856.20				18.47780														
LOBBY																	LOBBY																

OCEAN TWO CONDOMINIUM ASSOCIATION, INC.

BUDGET ITEM	2001 MONTHLY	BUDGET ANNUAL	2002 PROPOSED MONTHLY	BUDGET ANNUAL
REVENUE				
OWNER ASSESSMENTS -	\$162,490.00	\$1,949,880.00	\$172,090.16	\$2,065,081.92
RESERVE INCOME	\$0.00		\$0.00	\$0.00
TRANSMITTER INCOME	\$0.00		\$0.00	\$0.00
INTEREST INCOME	\$0.00		\$100.00	\$1,200.00
MISCELLANEOUS INCOME	\$0.00		\$1,000.00	\$12,000.00
TOTAL REVENUE	\$162,490.00	\$1,949,880.00	\$173,190.16	\$2,078,281.92
EXPENSES				
ADMINISTRATIVE				
ACCOUNTING FEES	350.00	4,200.00	\$350.00	\$4,200.00
COMPUTER MAINTENANCE/SUPPL	0.00	0.00	\$200.00	\$2,400.00
COPIER MAINTENANCE	125.00	1,500.00	\$125.00	\$1,500.00
DRINKING WATER SUPPLIES	0.00	0.00	\$75.00	\$900.00
ENGINEERING FEES	0.00	0.00	\$0.00	\$0.00
LEGAL FEES	125.00	1,500.00	\$200.00	\$2,400.00
ANNUAL CONDO FEES	85.00	1,020.00	\$85.00	\$1,020.00
LICENSE, TAXES, PERMIT	250.00	3,000.00	\$250.00	\$3,000.00
CORPORATE ANNUAL REPORT	6.00	72.00	\$6.00	\$72.00
OFFICE SUPPLIES	500.00	6,000.00	\$500.00	\$6,000.00
POSTAGE	350.00	4,200.00	\$100.00	\$1,200.00
PROFESSIONAL FEES	40.00	480.00	\$0.00	\$0.00
PROFESSIONAL FEES-CONSULTAN	350.00	4,200.00	\$450.00	\$5,400.00
MISCELLANEOUS	125.00	1,500.00	\$125.00	\$1,500.00
	0.00	0.00	\$0.00	\$0.00
TOTAL ADMINISTRATIVE	2,306.00	27,672.00	\$2,466.00	\$29,592.00
INSURANCE				
MULTIPERIL INSURANCE	19,167.00	230,004.00	\$19,100.00	\$229,200.00
	0.00	0.00	\$0.00	\$0.00
TOTAL INSURANCE	19,167.00	230,004.00	\$19,100.00	\$229,200.00
UTILITIES				
ELECTRICITY	18,000.00	216,000.00	\$18,000.00	\$216,000.00
WATER & SEWER	11,000.00	132,000.00	\$10,000.00	\$120,000.00
GAS/FUEL OIL	4,640.00	55,680.00	\$4,640.00	\$55,680.00
TELEPHONE	1,250.00	15,000.00	\$1,250.00	\$15,000.00
TOTAL UTILITIES	34,890.00	418,680.00	\$33,890.00	\$406,680.00
CONTRACTS				
AIR CONDITIONING	1,000.00	12,000.00	\$1,310.00	\$15,720.00
CABLE TELEVISION	3,825.00	45,900.00	\$3,825.00	\$45,900.00
ELEVATOR CONTRACT	1,100.00	13,200.00	\$4,640.00	\$55,680.00
FIRE ALARM EQUIPMENT- LIFE SAF	1,500.00	18,000.00	\$2,150.00	\$25,800.00
SECURITY SYSTEM CONTRACT	500.00	6,000.00	\$700.00	\$8,400.00
SECURITY SERVICES	21,670.00	260,040.00	\$11,000.00	\$132,000.00
HARD FLOOR CONTRACT	1,475.00	17,700.00	\$1,475.00	\$17,700.00
GENERATOR & FIRE PUMP SERVIC	100.00	1,200.00	\$150.00	\$1,800.00
LAWN & IRRIGATION CONTRACT	2,500.00	30,000.00	\$2,500.00	\$30,000.00
INTERIOR PLANT CONTRACT	1,000.00	12,000.00	\$1,000.00	\$12,000.00
MANAGEMENT SERVICES	2,032.00	24,384.00	\$2,115.00	\$25,380.00
SANITIZING ODOR CONTROL	300.00	3,600.00	\$300.00	\$3,600.00
PEST CONTROL INTERIOR	970.00	11,640.00	\$685.00	\$8,220.00
LANDSCAPE FERTILIZATION & PES	0.00	0.00	\$970.00	\$11,640.00
MEDJOL PALMS FERTILIZATION	0.00	0.00	\$425.00	\$5,100.00
POOL/SPA SERVICE CONTRACT	800.00	9,600.00	\$900.00	\$10,800.00
TRASH REMOVAL	1,400.00	16,800.00	\$1,500.00	\$18,000.00
BOILER CONTRACT	0.00	0.00	\$650.00	\$7,800.00
VALET SERVICES	13,325.00	159,900.00	\$13,626.00	\$163,512.00
BEACH & POOL RESTAURANT	11,000.00	132,000.00	\$12,000.00	\$144,000.00
RECYCLING SYSTEMS	0.00	0.00	\$2,325.00	\$27,900.00
WATER TREATMENT	200.00	2,400.00	\$200.00	\$2,400.00
WINDOW SERVICES	1,650.00	19,800.00	\$1,650.00	\$19,800.00
TOTAL CONTRACTS	66,347.00	796,164.00	\$66,096.00	\$793,152.00
SALARIES				
SALARIES - MANAGEMENT	8,300.00	99,600.00	\$8,550.00	\$102,600.00
SALARIES - JANITORIAL	7,580.00	90,960.00	\$7,883.20	\$94,598.40
SALARIES - MAINTENANCE	7,410.00	88,920.00	\$6,774.56	\$81,294.72
SALARIES - PAINTERS	1,760.00	21,120.00	\$1,830.40	\$21,964.80
SALARIES - FRONT DESK	0.00	0.00	\$11,485.00	\$137,820.00
SALARIES - SPA ATTENDANTS	3,500.00	42,000.00	\$3,325.00	\$39,900.00
SALARIES - RECEIVING	1,880.00	22,560.00	\$2,400.00	\$28,800.00
MEDICAL INSURANCE	1,850.00	22,200.00	\$2,365.00	\$28,380.00
TOTAL SALARIES	32,280.00	387,360.00	\$44,613.16	\$535,357.92
REPAIRS/MAINTENANCE				
R&M - AIR CONDITIONING	400.00	4,800.00	\$300.00	\$3,600.00
R&M - ELECTRICAL	200.00	2,400.00	\$200.00	\$2,400.00
R&M EQUIPMENT	150.00	1,800.00	\$150.00	\$1,800.00
R&M EQUIPMENT - FIRE	200.00	2,400.00	\$200.00	\$2,400.00
R&M EQUIPMENT - LIFE SAFETY	100.00	1,200.00	\$100.00	\$1,200.00
R&M EQUIPMENT - RADIOS	250.00	3,000.00	\$150.00	\$1,800.00
R&M EQUIPMENT - TOOLS	650.00	7,800.00	\$500.00	\$6,000.00
R&M - ENTRY SYSTEM	100.00	1,200.00	\$100.00	\$1,200.00
R&M - GENERAL	200.00	2,400.00	\$200.00	\$2,400.00
R&M - LIGHTING	500.00	6,000.00	\$500.00	\$6,000.00
R&M - LAUNDRY SUPPLIES	400.00	4,800.00	\$400.00	\$4,800.00
R&M - PLUMBING	100.00	1,200.00	\$100.00	\$1,200.00
R&M - POOL/SPA/FOUNTAIN	825.00	9,900.00	\$500.00	\$6,000.00
R&M - RUGS/MATS	200.00	2,400.00	\$200.00	\$2,400.00
LANDSCAPING EXTRAS	650.00	7,800.00	\$1,250.00	\$15,000.00
TREE TRIMMING	300.00	3,600.00	\$300.00	\$3,600.00
TREE, PLANT AND SHRUB REPLAC	400.00	4,800.00	\$400.00	\$4,800.00
CUSTODIAL SUPPLIES	550.00	6,600.00	\$450.00	\$5,400.00
SPA SUPPLIES	250.00	3,000.00	\$250.00	\$3,000.00
PAINT SUPPLIES	425.00	5,100.00	\$425.00	\$5,100.00
PLUMBING SUPPLIES	100.00	1,200.00	\$0.00	\$0.00
PAPER SUPPLIES	100.00	1,200.00	\$100.00	\$1,200.00
CONTINGENCY	100.00	1,200.00	\$0.00	\$0.00
UNIFORM	350.00	4,200.00	\$250.00	\$3,000.00
TOTAL GENERAL MAINTENANCE	7,500.00	90,000.00	\$7,025.00	\$84,300.00
RESERVE TRANSFERS				
RESERVE TRANSFERS	0.00		\$0.00	\$0.00
RESERVE INTEREST TRANSFER	0.00			\$0.00
TOTAL RESERVE TRANSFERS	0.00	0.00	\$0.00	\$0.00
TOTAL EXPENSES	162,490.00	1,949,880.00	\$173,190.16	\$2,078,281.92
NET INCOME / (LOSS)	0.00	0.00	\$0.00	\$0.00

OCEAN TWO CONDOMINIUM ASSOC., INC.
JANUARY 1, 2002 TO DECEMBER 31, 2002

SCHEDULE OF PROPOSED MAINTENANCE PAYMENTS - 2002

Unit Type	2001 Payment	% Of Unit Ownership	# Of Units	Total Percentage	Monthly		**Monthly** With Reserves	Total Without Reserves	Total With Reserves
					Without Reserves	Monthly Reserves			
C		0.3257	62	20.19	529.23	0.00	529.23	32,812.26	32,812.26
C1		0.4457	1	0.45	724.22	0.00	724.22	724.22	724.22
C2		0.3086	2	0.62	501.44	0.00	501.44	1,002.89	1,002.89
D		0.3686	63	23.22	598.94	0.00	598.94	37,733.10	37,733.10
D1		0.4543	1	0.45	738.19	0.00	738.19	738.19	738.19
D2		0.3514	2	0.70	570.99	0.00	570.99	1,141.98	1,141.98
E		0.4183	56	23.42	679.70	0.00	679.70	38,062.96	38,062.96
E1		0.5211	2	1.04	846.74	0.00	846.74	1,693.47	1,693.47
F		0.4568	61	27.86	742.25	0.00	742.25	45,277.51	45,277.51
F1		0.5597	2	1.12	909.46	0.00	909.46	1,818.91	1,818.91
F2		0.4568	2	0.91	742.25	0.00	742.25	1,484.51	1,484.51
				<u>254</u>	<u>100.000</u>			<u>\$162,490.00</u>	<u>\$162,490.00</u>

Total Maintenance Fees

	Monthly -'01
Maintenance Fees	162490.00
Reserve	<u>0.00</u>
Total	<u>162490.0000</u>

SCHEDULE "A"
TO
BY-LAWS

RULES AND REGULATIONS
FOR

OCEAN TWO CONDOMINIUM

Effective as of March 1, 2004

THESE RULES REPLACE ALL PRIOR RULES AND REGULATIONS

Common Areas:

1. Attire: All Owners, occupants and guests are required to wear appropriate attire throughout the common areas of the condominium. Shirts and footwear must be worn in all common areas inside the building.
2. No construction materials, decorating materials, bicycles, skate boards, in-line skating, roller skates, furniture, or large parcels may be transported or ridden through the lobby. Such items must go through the Receiving Dock or garage.
3. Deliveries: All Deliveries must be scheduled with the Management Office. All Deliveries will go through the receiving room, Monday through Friday from 9:00 a.m. to 5:00 p.m. sharp. A Unit Owner or representative must be available to take immediate receipt of item(s). A Unit Owner must furnish a local phone listing so receiving may contact the Unit Owner upon arrival of the delivery. At no time will the receiving room accept any delivery without Unit Owner or representative present.
4. Packages and Mail: A Receipt Authorization form, which can be obtained from the Management Office, must be completed and signed before packages and letters are accepted at the Front Desk, from U.S. Mail, UPS, FedEx, DHL and other delivery messenger services.
5. Moving: All moves must be scheduled through the Management Office. Moves are not permitted on the weekends or holidays. Moving hours are from 9:00 a.m. and must be completed by 5:00 p.m. Monday through Friday only. The appropriate deposits and fees are required prior to scheduling any move.
6. Outdoor Antennas, Wiring and Machines: Outdoor television and radio antennas are not permitted, neither are electrical wiring or machines. Satellite dishes under 36" in diameter are permitted if they are placed in a portable planter. Satellite dishes may not be fastened to the railings or the building.
7. Damage: Unit Owners accept financial responsibility for any damage done by themselves, their dependents, contractors, subcontractors, employees, renters, or their guests to any part of the Condominium, or Ocean Two property. This includes marking, engraving, denting or defacing.
8. The sidewalks, entrances, passages, lobbies, hallways, lower service levels and like portions of the Common Areas shall not be obstructed nor used for any purpose other than for ingress and egress to and from the Condominium Property; nor shall any carts, bicycles, carriages, chairs, tables or any other objects be stored therein, except in areas (if any) designated for such purposes.
9. No garbage, refuse, trash or rubbish shall be deposited in Common Areas except as permitted by the Association. The requirements from time to time of the company or agency providing trash removal services for disposal or collection shall be

complied with. All equipment for storage or disposal of such material shall be kept in a clean and sanitary condition.

9a. Boxes shall not be left in the sub-level or parking garage and elevator vestibules.

9b. All garbage must be bagged and tied-off before putting it into the trash chute.

10. No repair of vehicles shall be made on the Condominium Property.

11. No sign, advertisement, notice or other graphics or lettering shall be exhibited, displayed, inscribed, painted or affixed in, on or upon any part of the Condominium or Association Property, except signs used or approved by the Board of Directors of the Association. Additionally, no awning, canopy, shutter or other projection shall be attached to or placed upon the outside walls or roof of the Building or on the Common Areas, without the prior written consent of the Board of Directors of the Association.

12. The use of the Conference Room, Massage Room and the tennis courts are limited to a first-come, first-serve basis and reservations must be made through the front desk. The use of the Conference Room or tennis court by any one individual or group is limited to two (2) hours in any 24-hour period, unless there are no other requests for the facilities.

a. Reservations for the Tennis Courts will not be accepted more than 48 hours in advance.

13. Per the Florida Indoor Air Act, smoking is prohibited in the Common Areas of the Building.

14. Guest policy for use of Common Areas and facilities. Unit owners must accompany their guest(s) at all times on the Association's common areas of the Building. No more than eight (8) guests are permitted. A temporary Guest Pass may be used for guest stays up to a period of 30 days. The Unit owner shall not be required to accompany any guest(s) who has been issued a valid Guest Pass. Management will issue a Guest Pass upon receipt of a written authorization from the Unit owner. The written authorization must indicate the names of the guest(s), the number of guests and the length of stay. The written authorization may be faxed, delivered in person or mailed to the Ocean Two Management Office prior to such guest(s) arrival.

15. Lifestyle Center: Reservations of the Lifestyle Center to be used for parties must be made through the Management Office on a first-come-first-served basis. The Application Form along with all applicable fees and deposits must be submitted at least ten (10) business days prior to the any event.

Building Security:

16. In order to maintain the security of the Building, all residents must firmly close all exterior Building doors after entering or exiting the Building, so that such doors remain locked. No residents shall place or prop any objects in the exterior doors in order to gain access back into the Building.

17. Any attempted breach of security, by a resident or their guests, which could compromise the welfare of Unit owners, their guests or employees of the Association, will be considered a serious matter. A breach of security would include, but not limited to, tampering with the Building security system or fire safety system, disrupting security guards while on duty, or releasing Building keys, FOBS or parking transmitters to non-residents, creating a disturbance or violating Building rules which would require security attention.

18. Any vandalism, desecration or alteration of the Building property by a Unit owner or their guests will be the responsibility of the Unit owner. The association will hold the Unit owner responsible for any financial damages and may seek criminal or civil action to the extent available by law.

19. No person will be allowed into any Unit without written authorization from the Unit Owner and this authorization must be on file with the Association and kept in the Management Office and at the Front Desk. It will be the Unit Owners responsibility to make sure that the Authorization is current and has not expired.

Building Parking:

20. Parking is permitted only in properly assigned parking spaces or with the Building Valet Service.

21. Speed Limit: The speed limit on Association property is 5 miles per hour.

22. Boats and Commercial Vehicles: Boats and commercials vehicles are not permitted within the garage or on any of the common areas.

23. Oversized Vehicles: The Association will not accept responsibility for any vehicle that comes into contact with any overhead or side obstruction in the garage due to the height or width of the vehicle. Any damage as a result of an oversized vehicle will be the responsibility of the Unit Owner (Hummers, Vans, etc.).

24. Residents who park in a space not assigned to them will be towed away, without prior notice, at the vehicle owner's expense.

25. Guests of residents must use the Building valet service and residents must instruct their guests accordingly.

26. Any vehicle parked in the fire lanes or other prohibited areas will be towed away immediately at the vehicle owner's expense.

27. Whereas, it is necessary for the Association to provide adequate parking for Handicapped Guests to residents of the community, the Handicapped spaces located in front of the Building adjacent to the lobby are designated as "Visitor Only Handicapped Spaces". Residents of the Building are not permitted to park in these spaces at any time. Handicapped residents with proper decal displayed must use the Handicapped spaces provided on both levels of the garage.

28. Visitors with proper decal displayed may use the Handicapped spaces provided in front of the Building for a maximum of 24 hours. Periods longer than that will require the guest to use valet parking.

Inside Units:

29. No Unit owner or occupant shall make or permit any disturbing noises by himself or his family, servants, employees, pets, agents, visitors or licensees, nor permit and conduct by such persons or pets that will interfere with the rights, comforts or conveniences of other Unit Owners or occupants. No Unit Owner or occupants shall play or permit to be played any musical instrument nor operate or permit to be operated a phonograph, television, radio or sound amplifier in his Unit in such a manner as to disturb or annoy other residents. No Unit owner or occupant shall conduct, nor permit to be conducted, vocal or instrumental instruction at any time, which disturbs other residents.

30. Children will be the direct responsibility of their parents or legal guardians, including full supervision of them while within the Condominium Property and including full compliance by them with these Rules and Regulations and all other rules and regulations of the Association. Loud noises will not be tolerated.

a. Cardio and Weight Rooms: Children under 12 years of age are not permitted to use the equipment at any time. Children using the equipment who are between the ages of 12 and 16 years of age must have an adult with them at all time.

b. The Lifestyle Center: All children under sixteen (16) years of age must have an adult present at all times when entering and/or utilizing the Lifestyle Center.

c. Swimming Pool: Children under the age of 12 must have an adult present with them at all times when utilizing the pool or hot tub. Any child who requires a diaper, must be wearing "Swimmies" before entering the pool.

31. The personal property of Unit owners and occupants must be stored in their respective Units.

32. No flammable, combustible or explosive fluids, chemicals or substances shall be kept in any Unit or on the Common Areas.

33. No air conditioning units may be installed by Unit owners or occupants. No Unit shall have any aluminum foil placed in any window or glass door or any reflective or tinted substance placed on any glass, unless approved, in advance by the Board of Directors in writing. No unsightly materials may be placed on any window or glass door or be visible through such window or glass door.

34. Residents must dispose of sweepings, rubbish or other foreign matter in their trash chute and not in their household plumbing. Plumbing stoppages are not under Building Warranty and Unit owners will be held financially responsible for any necessary repairs.

35. A Unit owner or occupant who plans to be absent during the hurricane season must prepare his Unit by removing all items from the balcony, terrace or Lanai prior to his departure.

36. Contractors: Architectural Change Requests must be made through the Management Office and the forms must be filled in completely and the appropriate deposits and fees paid before Association approval is obtained. Guidelines are available in the Management Office.

37. Flooring: All flooring must meet architectural approval. This includes patio and balcony areas. When installing tiles, installation must be pitched away from patio doors. The forms are available in the Management Office and deposits and fees must be paid and the proper forms filled in before approval will be granted. City permits are the responsibility of the Owners having the work done. Owners may use carpeting or vinyl tile inside a unit with appropriate padding. Hard surfaces such as marble and tile may be used only with the approved soundproofing material. Specifications for soundproofing are available in the Management Office.

38. Rentals: All rentals must be approved by the Board of Directors. A lease along with the Ocean Two Condominium Association's lease addendum must be filled in completely. Additionally, the application screening form with all applicable fees including a refundable security deposit equal to one months rent must be submitted prior to approval (please allow a week to ten days for approval).

38a. Any Unit Owner who rents their unit forfeits any right to use the condominium Associations amenities.

Balconies, Terraces, Patios And Lanai:

39. No articles other than patio-type furniture shall be placed on the balconies, patios or other Common Areas. No linens, cloths, clothing, curtains, rugs, mops, or laundry of any kind, or other articles, shall be shaken or hung from any of the windows, doors, balconies, terraces or other portions of the Condominium or Association Property.

40. Patio furniture, which is visible above the height of the balcony railing from the outside of the Building, is not permitted.

41. Carpeting of any type is prohibited on balconies, terraces, patios or lanai because carpeting is porous and can trap water, which will eventually allow the rebar to rust and cause spalling of the concrete and structural damage to the Building.

42. Owners and residents may not enclose, nor cover, nor alter balconies, terraces, patios or lanai in any way.

43. Laundry, clothes, makeshift or fixed clotheslines or drying racks, may not be hung on balconies, terraces, patios or lanai.

44. Cooking devices of any type may not be used or stored on balconies, terraces, patios or lanai.

45. No Unit owner or occupant shall permit anything to fall from a window or door of the Condominium or Association Property, nor sweep or throw from the Condominium or Association Property any dirt or other substance onto any of the balconies or elsewhere in the Building or upon the Common Areas.

46. A Unit owner or occupant shall not cause anything to be affixed or attached to, hung, displayed or placed on the exterior walls, doors, balconies or windows of the Building. Notwithstanding the foregoing, any Unit owner may display one portable removable United States flag in a respectful way. Curtains and drapes (or linings thereof) which face on exterior windows or glass doors of Units shall be subject to disapproval by the Board, in which case they shall be removed and replaced with acceptable items.

47. In the event of a hurricane watch reported by the National Weather Bureau, all items must be removed from balconies, terraces, patios and lanai no later than 36 hours before the approach of the hurricane and may not be returned until the National Weather Bureau reports that the threat of a hurricane or other potentially severe windstorm has passed away from the area.

Resident Pets:

48. Pets, Birds, fish and other animals, reptiles or wildlife shall neither be kept nor maintained in or about the Condominium Property except in accordance with the following, in addition to the applicable terms of the Declaration:

(a) Dogs and cats shall not be permitted outside of their owner's Unit unless attended by a responsible person of at least 12 years of age and on a leash not more than six (6) feet long. Said dogs and cats shall only be walked or taken upon those portions of the Common Areas designated by the Association from time to time for such purposes. In no event shall said dog or cat ever be allowed to be walked or taken on or about any recreational facilities contained within the Condominium Property.

(b) Fish or caged domestic (household-type) birds may be kept in the Units, subject to the provisions of the Declaration.

49. Each Unit is allowed only one (1) dog, not to exceed 30 lbs. Pets must be hand-carried at all times within the common areas inside of the Building and all pets must be registered with the Association in the Property Manager's office.

50. Each Unit owner is responsible to ensure that their pet's feces is immediately removed and sealed in a plastic bag or container and disposed of in a proper trash receptacle.

Condominium Association:

51. The Board of Directors shall be solely responsible for directing and supervising employees of the Association. Employees of the Association are not to be sent out by Unit owners or occupants for personal errands.

52. No oil drilling, oil development operations, oil refining, quarrying or mining operations of any kind shall be permitted on, upon or in the Condominium or Association Property, nor shall oil wells, tanks, tunnels, mineral excavations or shafts be permitted upon or in the Condominium or Association Property. No derrick or other structure designed for use in boring for oil, natural gas or minerals shall be erected, maintained or permitted upon any portion of the Condominium or Association Property.

53. Every owner and occupant shall comply with these Rules and Regulations as set forth herein, any and all rules and regulations which from time to time may be adopted, and the provisions of the Declaration, Bylaws and Articles of Incorporation of the Association, as amended from time to time. Failure of an owner or occupant to so comply shall be grounds for action, which may include, without limitation, any action to recover sums due for damages, injunctive relief, or any combination thereof. In addition to all other remedies, in the sole discretion of the Board of Directors of the Association, a fine or fines may be imposed upon an owner for failure of an owner, his family, guests, invitees, lessees or employees, to comply with any covenant, restriction, rule or regulation herein or in the Declaration, Articles of Incorporation or Bylaws, provided the following procedures are adhered to:

(a) Notice: The party against whom the fine is sought to be levied shall be afforded an opportunity for hearing after reasonable notice of not less than fourteen (14) days and said notice shall include: (i) a statement of the date, time and place of the hearing; (ii) a statement of the provisions of the declaration, association By-Laws, or association rules which have allegedly been violated; and (iii) a short and plain statement of the matters asserted by the association.

(b) Hearing: The noncompliance shall be presented to a committee of other Unit owners, who shall hear reasons why penalties should not be imposed. The party against whom the fine may be levied shall have an opportunity to respond, to present evidence, and to provide written and oral argument on all issues involved and shall have an opportunity at the hearing to review, challenge, and respond to any material considered by the committee. A written decision of the committee shall be submitted to the owner or occupant by not later than twenty-one (21) days after the meeting.

(c) Fines: The Board of Directors may impose fines against the applicable Unit up to the maximum amount permitted by law from time to time.

(d) Violations: Each separate incident, which is grounds for a fine shall be the basis of one separate fine. In the case of continuing violations, each continuation of same after a notice thereof is given shall be deemed a separate incident.

(e) Payment of Fines: Fines shall be paid not later than thirty (30) days after notice of the imposition thereof.

(f) Application of Fines: All monies received from fines shall be allocated as directed by the Board of Directors.

(g) Non-exclusive Remedy: These fines shall not be construed to be exclusive and shall exist in addition to all other rights and remedies to which the Association may be otherwise legally entitled: however, any penalty paid by the offending owner or

occupant shall be deducted from or offset against any damages which the Association may otherwise be entitled to recover by law from such owner or occupant.

54. These rules and regulations shall be cumulative with the covenants, conditions and restrictions set forth in the Declaration of Condominium, provided that the provisions of same shall control over these rules and regulations in the event of a conflict or a doubt as to whether a specific practice or activity is or is not permitted. These rules and regulations shall not apply to the Developer, nor its agents or employees and contractors, nor the Units owned by the Developer, unless such Units shall become occupied. All of these rules and regulations shall apply to all other owners and occupants, even if not specifically so stated in portions hereof. The Board of Directors shall be permitted (but not required) to grant relief to one or more Unit owners from specific rules and regulations upon written request therefor and good cause shown in the sole opinion of the Board.

55. Information, which is requested from Ocean Two, whether written or oral, which is supplied to real estate appraisers, will require a \$50 fee for each appraisal.

56. Information which is requested from Ocean Two, which is supplied to real estate brokers, mortgage brokers or others for the purpose of completing a condominium mortgage questionnaire (i.e. Public Use Document – PUD Form) will require a \$75 fee for each separate questionnaire.

57. The Association will sell FOBS and garage transmitters to Unit residents, but only with the written approval from the Unit owner. Defective FOBS or transmitters will be exchanged but no refunds will be issued, even after the Unit is sold to another party.

**RESOLUTION OF THE BOARD OF DIRECTORS OF OCEAN TWO
CONDOMINIUM ASSOCIATION, INC.**

WHEREAS, the Association has been established to operate and maintain Ocean Two Condominium (the "Condominium"); and

WHEREAS, Article 14 of the Association's By-Laws empowers the Board of Directors (the "Board") to adopt and amend the Rules and Regulations covering the details of the operation and use of the Condominium; and

WHEREAS, in order to preserve and maintain the Association's elevators, the Board has determined it is necessary to establish specific Rules governing the use of the Association's designated contractor elevators (the "Contractor Elevator") .

NOW, THEREFORE, BE IT RESOLVED as follows:

1. Any residents moving in or out of the Condominium who wish to insure the availability and exclusive use of a Contractor Elevator must reserve the use of a Contractor Elevator in advance, and shall be required to pay a \$100.00 non refundable fee. It is specifically understood that the purpose of such fee is to reserve the exclusive use of a Contractor Elevator and for the supply and use of protective materials. Scheduling of move ins and move outs shall be based on the order such requests are received by the Association's management office.
2. All residents utilizing a Contractor Elevator for move-ins and move-outs must remit prior to the use of a Contractor Elevator a \$500.00 refundable security deposit to protect against damages to the Contractor Elevator or other Association property.
3. All residents utilizing a Contractor Elevator to transport materials or furnishings in connection with renovations within their unit shall be required to reserve the use of a Contractor Elevator in advance. Scheduling of the use of a Contractor Elevator for such purpose shall be based on the order such requests are received by the Association's management office. Along with such request, the resident shall submit a written description of the materials being transported and the period of time the use of a Contractor Elevator will be required. The Association's manager shall use her discretion to determine whether the nature of such use warrants the collection of a security deposit.
4. If it is determined the nature of the use of the Contractor Elevator for unit renovations requires the collection of a security deposit, the resident shall be required to remit prior to the use of the Contractor Elevator a \$500.00 refundable security deposit to the Association.
5. Upon notification from the resident that their use of the Contractor Elevator has been completed, the Contractor Elevator shall be inspected by management. If there are no damages to the Contractor Elevator, the security deposit shall be refunded to the resident within five (5) days of the date of such inspection. In the event the Contractor Elevator has sustained any damages, the resident shall be notified and the costs for such damages shall be deducted from the security deposit. The balance, if any, of such security deposit shall be refunded to the

SCHEDULE "A"
TO
BY-LAWS

RULES AND REGULATIONS
FOR

OCEAN TWO CONDOMINIUM

1. The sidewalks, entrances, passages, lobbies and hallways and like portions of the Common Elements shall not be obstructed nor used for any purpose other than for ingress and egress to and from the Condominium Property; nor shall any carts, bicycles, carriages, chairs, tables or any other objects be stored therein, except in areas (if any) designated for such purposes.

2. The personal property of Unit Owners and occupants must be stored in their respective Units.

3. No articles other than patio-type furniture shall be placed on the balconies, patios or other Common Elements. No linens, cloths, clothing, curtains, rugs, mops, or laundry of any kind, or other articles, shall be shaken or hung from any of the windows, doors, balconies, terraces or other portions of the Condominium or Association Property.

4. No Unit Owner or occupant shall permit anything to fall from a window or door of the Condominium or Association Property, nor sweep or throw from the Condominium or Association Property any dirt or other substance onto any of the balconies or elsewhere in the Building or upon the Common Elements.

5. No garbage, refuse, trash or rubbish shall be deposited except as permitted by the Association. The requirements from time to time of the company or agency providing trash removal services for disposal or collection shall be complied with. All equipment for storage or disposal of such material shall be kept in a clean and sanitary condition.

6. Employees of the Association are not to be sent out by Unit Owners or occupants for personal errands. The Board of Directors shall be solely responsible for directing and supervising employees of the Association.

7. No repair of vehicles shall be made on the Condominium Property.

8. No Unit Owner or occupant shall make or permit any disturbing noises by himself or his family, servants, employees, pets, agents, visitors or licensees, nor permit any conduct by such persons or pets that will interfere with the rights, comforts or conveniences of other Unit Owners or occupants. No Unit Owner or occupant shall play or permit to be played any musical instrument, nor operate or permit to be operated a phonograph, television, radio or sound amplifier in his Unit in such a manner as to disturb or annoy other residents. No Unit Owner or occupant shall conduct, nor permit to be conducted, vocal or instrumental instruction at any time which disturbs other residents.

9. No sign, advertisement, notice or other graphics or lettering shall be exhibited, displayed, inscribed, painted or affixed in, on or upon any part of the Condominium or Association Property, except signs used or approved by the Developer. Additionally, no awning, canopy, shutter or other projection shall be attached to or placed upon the outside walls or roof of the Building or on the Common Elements, without the prior written consent of the Board of Directors of the Association.

10. No flammable, combustible or explosive fluids, chemicals or substances shall be kept in any Unit or on the Common Elements.

11. A Unit Owner or occupant who plans to be absent during the hurricane season must prepare his Unit prior to his departure by designating a responsible firm or individual to care for his Unit should a hurricane threaten the Unit or should the Unit suffer hurricane damage, and furnishing the Association with the name(s) of such firm or individual. Such firm or individual shall be subject to the approval of the Association.

12. A Unit Owner or occupant shall not cause anything to be affixed or attached to, hung, displayed or placed on the exterior walls, doors, balconies or windows of the Building. Notwithstanding the foregoing, any Unit Owner may display one portable removable United States flag in a respectful way. Curtains and drapes (or linings thereof) which face on exterior windows or glass doors of Units shall be subject to disapproval by the Board, in which case they shall be removed and replaced with acceptable items.

13. No oil drilling, oil development operations, oil refining, quarrying or mining operations of any kind shall be permitted on, upon or in the Condominium or Association Property, nor shall oil wells, tanks, tunnels, mineral excavations or shafts be permitted upon or in the Condominium or Association Property. No derrick or other structure designed for use in boring for oil, natural gas or minerals shall be erected, maintained or permitted upon any portion of the Condominium or Association Property.

14. No airconditioning units may be installed by Unit Owners or occupants. No Unit shall have any aluminum foil placed in any window or glass door or any reflective or tinted substance placed on any glass, unless approved, in advance by the Board of Directors in writing. No unsightly materials may be placed on any window or glass door or be visible through such window or glass door.

15. Children will be the direct responsibility of their parents or legal guardians, including full supervision of them while within the Condominium Property and including full compliance by them with these Rules and Regulations and all other rules and regulations of the Association. Loud noises will not be tolerated. All children under twelve (12) years of age must be accompanied by a responsible adult when entering and/or utilizing the recreational facilities.

16. Pets, birds, fish and other animals, reptiles or wildlife shall neither be kept nor maintained in or about the Condominium Property except in accordance with the following, in addition to the applicable terms of the Declaration:

(a) Dogs and cats shall not be permitted outside of their owner's Unit unless attended by an adult and on a leash not more than six (6) feet long. Said dogs and cats shall only be walked or taken upon those portions of the Common Elements designated by the Association from time to time for such purposes. In no event shall said dog or cat ever be allowed to be walked or taken on or about any recreational facilities contained within the Condominium Property.

(b) Fish or caged domestic (household-type) birds may be kept in the Units, subject to the provisions of the Declaration.

17. Every Owner and occupant shall comply with these Rules and Regulations as set forth herein, any and all rules and regulations which from time to time may be adopted, and the provisions of the Declaration, By-Laws and Articles of Incorporation of the Association, as amended from time to time. Failure of an Owner or occupant to so comply shall be grounds for action which may include, without limitation, an action to recover sums due for damages, injunctive relief, or any combination thereof. In addition to all other remedies, in the sole discretion of the Board of Directors of the Association, a fine or fines may be imposed upon an Owner for failure of an Owner, his family, guests, invitees, lessees or employees, to comply with any covenant, restriction, rule or regulation herein or in the Declaration, Articles of Incorporation or By-Laws, provided the following procedures are adhered to:

(a) Notice: The party against whom the fine is sought to be levied shall be afforded an opportunity for hearing after reasonable notice of not less than fourteen (14) days and said notice shall include: (i) a statement of the date, time and place of the hearing; (ii) a statement of the provisions of the declaration, association bylaws, or association rules which have allegedly been violated; and (iii) a short and plain statement of the matters asserted by the association.

(b) Hearing: The noncompliance shall be presented to the a committee of other Unit Owners, who shall hear reasons why penalties should not be imposed. The party against whom the fine may be levied shall have an opportunity to respond, to present evidence, and to provide written and oral argument on all issues involved and shall have an opportunity at the hearing to review, challenge, and respond to any material considered by the committee. A written decision of the committee shall be

submitted to the Owner or occupant by not later than twenty-one (21) days after the meeting.

(c) Fines: The Board of Directors may impose fines against the applicable Unit up to the maximum amount permitted by law from time to time.

(d) Violations: Each separate incident which is grounds for a fine shall be the basis of one separate fine. In the case of continuing violations, each continuation of same after a notice thereof is given shall be deemed a separate incident.

(e) Payment of Fines: Fines shall be paid not later than thirty (30) days after notice of the imposition thereof.

(f) Application of Fines: All monies received from fines shall be allocated as directed by the Board of Directors.

(g) Non-exclusive Remedy: These fines shall not be construed to be exclusive and shall exist in addition to all other rights and remedies to which the Association may be otherwise legally entitled; however, any penalty paid by the offending Owner or occupant shall be deducted from or offset against any damages which the Association may otherwise be entitled to recover by law from such Owner or occupant.

18. These rules and regulations shall be cumulative with the covenants, conditions and restrictions set forth in the Declaration of Condominium, provided that the provisions of same shall control over these rules and regulations in the event of a conflict or a doubt as to whether a specific practice or activity is or is not permitted. These rules and regulations shall not apply to the Developer, nor its agents or employees and contractors, nor to the Units owned by the Developer. All of these rules and regulations shall apply to all other Owners and occupants even if not specifically so stated in portions hereof. The Board of Directors shall be permitted (but not required) to grant relief to one or more Unit Owners from specific rules and regulations upon written request therefor and good cause shown in the sole opinion of the Board.

II. RULES, REGULATIONS AND RESIDENT RESPONSIBILITIES

A. Introduction:

Everyone who flies takes for granted those safety instructions that the flight attendant rehearses during each taxi. Similarly, condominium owners think they have heard about every proper procedure, about every rule, and every regulation many times. It makes better sense not to take anything for granted. So even if you're convinced you've heard it all before, please review this section with care so that your experience at OCEAN TWO remains pleasant and positive. As a condominium community, we are only as good as our willingness to cooperate and respect the privacy of our neighbors.

Thank you in advance for your anticipated compliance and cooperation.

B. Attire:

Wear appropriate attire for the activities room and other common areas. Shirts and shoes must be worn in common areas of the building.

C. Balconies and Terraces:

Loose items have a tendency to fall off ledges. For the protection of all, please do not place any items on the ledge of your balcony. **Tile on balconies should be placed to the center of the balcony railings "ONLY" leaving a few inches between the tile and the balcony edge which you will need to paint the same color as exterior. Also, be advised that it is the Unit Owner's responsibility to have their contractor waterproof each balcony. Please check with the Property Manager for specifications on paint and waterproofing.**

To preserve the beauty of your home, and to enhance its value, a uniform exterior appearance will result from compliance with the following rules:

- ☐ Residents may not enclose, nor cover, nor alter balconies and terraces in any way. Residents may not affix or cover the exterior windows or doors in any fashion whatsoever.
- ☐ Laundry, clothes, makeshift or fixed clotheslines, or drying racks and towels may not be hung on the balconies or terraces. Clothing and towels may not be hung over the ledges to dry.
- ☐ Furniture and umbrellas visible above the height of the railing from the outside of the building are not permitted.
- ☐ Cooking devices may not be used on balconies or terraces.
- ☐ In the case of a hurricane watch all items must be removed from balconies and terraces within a certain period of time. Contact the Management Office if you're to be absent

D. Belongings:

Please do not leave your belongings unattended in hallways, elevators, lobbies, or other common areas. The Association can not be responsible for such items.

E. Boats and Commercial Vehicles:

Please note there are no facilities available to accommodate recreational or oversized vehicles.

F. Children:

For the safety of all, children may not play in the elevators, or lobbies. Children under the age of 16 must be accompanied by an adult in the pool and common areas. Parents are responsible for the behavior of their children. Please consider the privacy of other residents.

G. Curtains:

Curtain color is to be white or off-white, facing the building exterior.

H. Damage:

Residents accept financial responsibility for any damage done by themselves, their dependents, contractor, subcontractors or their guests to any part of the Condominium, or OCEAN TWO property. This includes marking, engraving, denting, or defacing.

I. Deliveries:

Please schedule the delivery of all valuables at a time when you will be available to take immediate receipt of them. This will save you and the staff time and concern. You must alert the Management Office if there is a large item being delivered. A receipt authorization form, which can be obtained from the Management Office, needs to be completed and signed before packages are accepted. Receiving hours are from 9:00 am to 5:00 p.m., Monday through Friday.

J. Extended Absences:

If you expect to be away for an extended period of time, please remove all objects from your balcony or terrace and make arrangements for your mail and packages to be forwarded to you.

K. Flooring:

Any hard surface or hard flooring material installation must meet architectural approval. This includes patio and balcony areas. When installing tiles, please ensure installer is aware that installation should be pitched away from patio doors. Contact the Management Office for instructions.

L. Noise:

Between the hours of 11:00 p.m. and 8:00 a.m., please keep volume on home entertainment equipment including such items as televisions, musical instruments and stereos at an acceptable level. Exercise audio courtesy, please, at all times.

Residents may use carpeting or vinyl tile, over an acceptable padding. Hard surfaces such as marble and tile may be used only with approved soundproofing material. Consult your Property Manager for further information.

Please refrain from any type of work that produces any noise, such as carpentry or tool work, between the hours of 5:00 p.m. and 9:00 a.m.

M. Obstructions:

For your protection, all public passageways must be kept completely free of all obstruction, such as boxes, bikes, or other articles, such as shoes and umbrella's.

N. Outdoor Antenna, Wiring and Machines:

Outdoor television and radio antennas are not permitted, neither are electrical wiring, machines, or air conditioning units that protrude through the walls of a residence.

O. Parking:

We ask that you please adhere to the following guidelines concerning the parking areas, so that everyone may enjoy unimpeded access to the community. Also note that repairs of vehicles may not be made on Condominium property.

1. Parking facilities shall be used in accordance with the regulations adopted by the Association. Parking is only permitted in properly designated parking spaces, and no vehicles may park on any other common or limited common areas, including, but not limited to, grass and walkways.
2. You may use only the parking space(s) specifically designated for your unit; additional vehicle must be valet parked.
3. Guests must use the building valet service. Please instruct your guests accordingly.

P. Pets:

Please register your pet with the Property Manager's office, including a picture. Please be advised that each apartment is allowed (1) one pet at a carry-able weight. We insist you carry your pet at all times within the common areas of the building. Your pet must be walked off of the condominium property only and may not enter the pool area.

Q. Plumbing:

Please do not dispose of sweepings, rubbish or other foreign matter in your household plumbing. Residents who use the plumbing for such purposes will be held financially responsible for any necessary repairs. **Plumbing stoppages are not under warranty.**

R. Restricted Areas:

Please keep away from restricted areas of the property, including the roof and areas under construction.

S. Signs:

Residents may not post signs on OCEAN TWO property. A bulletin board that serves for the use of OCEAN TWO residents for special or individual announcements or notices will be available.

T. Smoking Policy:

Per the Florida Clean Indoor Air Act, smoking is not allowed in building common areas.

U. Solicitations:

Solicitations by residents for charity or any other purpose must be authorized in advance by OCEAN TWO CONDOMINIUM ASSOCIATION Board of Directors.

V. Speed Limit:

The speed limit on Association property is 5 miles per hour.

W. Visitors and Live-in Guests:

1. Please advise the Management Office if you plan to have non-residents or guests reside in your home. Owner will be held liable for any damages, actions, noise, etc. that may be incurred by lessee, guest or relative. Please be advised that only (3) three permanent guests at a time are permitted.
2. Please fill out an emergency contact form as well as a unit access authorization form for any person providing regular domestic service.
3. Please advise Management Office of frequent visitors and relationship to owner.
4. All persons interested in resales/rentals/leasing need to be reviewed and approved. Forms are available at the Management Office.

**WRITTEN ACTION IN LIEU OF MEETING OF THE MEMBERS OF
THE OCEAN TWO CONDOMINIUM ASSOCIATION, INC.**

THIS WRITTEN ACTION is executed as of the 26 day of JOSE, 2001 by OCEAN TWO LIMITED PARTNERSHIP, a Florida limited partnership. Unless otherwise defined herein, all initial capitalized terms used herein shall have the same meanings as given to them in the Declaration of OCEAN TWO CONDOMINIUM, recorded on the 26th day of June 2001 in Official Records Book 19740, at Page 2800 of the Public Records of Miami-Dade County, Florida, as amended and/or supplemented from time to time.

WHEREAS, the undersigned constitutes the sole owner of each and every Unit in the Condominium;

WHEREAS, Section 718.111(14) Florida Statutes, provides that, by an affirmative vote of a majority of the voting interests of the Association, Owners may elect to waive the requirement that the Association's financial statements for any particular fiscal year be audited, reviewed or compiled.

WHEREAS, Section 718.112(2)(f)2, Florida Statutes, provides that, by an affirmative vote of a majority of the voting interests of the Association, Owners may elect to waive the requirement that the Association maintain reserves for repairs to, and replacements of, the Common Elements.

WHEREAS, Section 3.11 of the By-Laws provides that any action may be taken without a meeting or without prior notice and without a vote if consented to in writing by a sufficient number of Unit Owners to sufficiently approve a matter; and

WHEREAS, the undersigned, as the sole Owner, now desires to waive the requirement for audited, reviewed or compiled financial statements of the Association and to waive the requirement for the maintenance of reserves for repairs or replacements to the common elements.

NOW, THEREFORE, pursuant to the authority and for the reasons aforementioned, the undersigned hereby resolves as follows:

RESOLVED, that the financial statements for the Association for fiscal year 2002 shall not require an audit, review or compilation, rather same shall be prepared in accordance with the requirements of Section 718.111(13), Florida Statutes.

RESOLVED, that reserves for replacements and repairs shall be waived for fiscal year 1999 of the Association and that no Unit Owner or Association member shall be required to fund any reserve account for said fiscal year.

IN WITNESS WHEREOF, the undersigned has executed this Written Action In Lieu Of Meeting as of the date and year first above written.

OCEAN TWO LIMITED PARTNERSHIP, a
Florida limited partnership

By: TRG Beach Two, Inc., a Florida
corporation, General Partner

By: _____
Martha Vitkovich
Vice President

